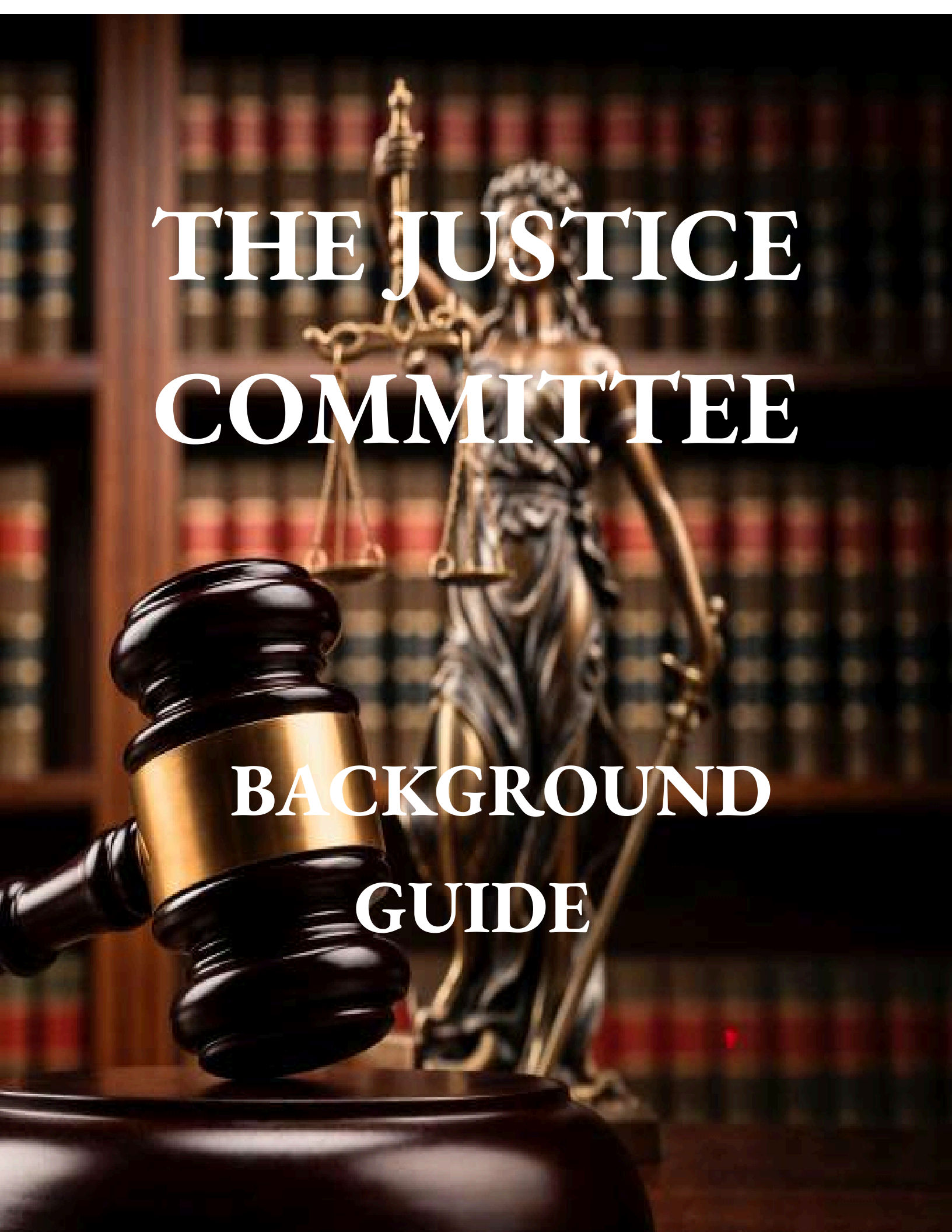




THE JUSTICE COMMITTEE



BACKGROUND GUIDE

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THE JUSTICE COMMITTEE



Letters from the Executive Board



Greetings Delegates!

It gives me immense pleasure to welcome you all to the Justice Committee at SMUN 2026. I am Shiven Uppal, a grade 12 student, and it is my absolute honour and privilege to serve as your Director for what promises to be an unforgettable committee.

As someone extremely passionate about fostering collaboration and finding diplomatic solutions, I am thrilled to embark on this super exciting and exhilarating journey of diplomacy with each one of you. Think of me as your navigator through the journey, with a crazy sense of humour and endless drive to keep

things lively! I promise you I will keep you all entertained.

To give you a quick backstage pass in my life, I am pursuing Mathematics, Economics, Political Science, Psychology and English. Outside of academics, I am an avid cook, a traveller, and a swimmer. My interest in Maths has shaped my educational journey. I have had the opportunity of participating in numerous prestigious Olympiads and competitions and winning them.

MUNs have shaped my leadership skills and research capabilities. My MUN journey began in grade 7, within the dynamic environment of the Crisis delegate. The pace, the unpredictability and the thrill of adapting to new crises pushed me beyond my comfort zone. The adrenaline rush I felt every time I did Crisis Committee was almost addictive, as it kept me on my toes and taught me how to perform under pressure. I am blessed to have experienced some of the greatest

friendships in Crisis. My seniors and mentors scolded me when I faltered, guided me when I lost track and inspired me to perform better, shaping me into the delegate that I am today.

However, what lies before you today is not merely a crisis simulation driven by strategy and speed. This committee demands something deeper. You are not here to negotiate outcomes or secure alliances, but you are here to examine decisions that shaped one of the most consequential periods in human history. The Justice Committee requires you to move beyond narrative and engage with questions of responsibility, legality, and moral judgment. History, in this space, is not just static; it is contested, interpreted, and evaluated.

As delegates, you are expected to look for evidence, plan logical arguments, and respond to new developments with composure and intelligence. This committee will test not only your knowledge but also your ability to navigate uncertainty, challenge assumptions, and defend your positions under scrutiny. This committee will not offer easy answers. Your position will change frequently, your perspectives will conflict, and you will find it difficult to achieve clarity. The true essence of this committee lies within this complex environment.

As we move forward, I expect you to think critically, showcase your ideas with conviction and ground them in logic and evidence. The question before you is not simply what happened but how you choose to interpret it. I look forward to witnessing well-thought-out debate, rigorous analysis, and meaningful engagement throughout this committee.

I am enthralled to welcome you to be a part of a forum governed by reason and accountability. Own the room and let reason and evidence be your finest weapons! As you dive into this committee, remember,

“History will not remember what was said, only what was justified.”

Kindest Regards,

Shiven Uppal

Director

The Tribunal of the Fallen Sun



“When a war ends, victory decides the outcome, but justice decides the meaning.”



Greetings Delegates,

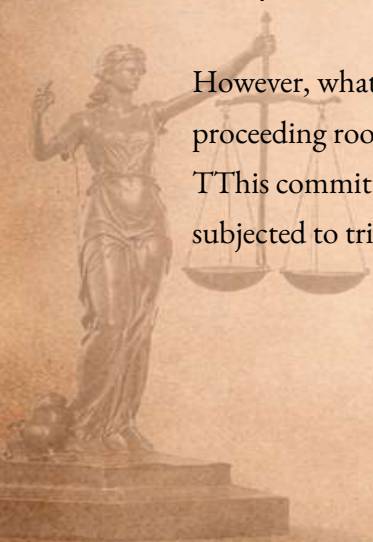
It is my privilege to serve as your Director for this inaugural session of the Justice Committee at this edition of. As this also marks my final conference as a Director, this committee holds a certain personal significance, and I look forward to seeing each one of you rise to the occasion.

Allow me to briefly introduce myself. I am currently in the 12th grade, pursuing Mathematics, Economics, Political Science, and Business Studies. Beyond committee rooms, I spend much of my time playing basketball and following sports closely. Whether it is watching Stephen Curry and the Golden State Warriors chase one final championship, seeing Novak Djokovic continue to compete at the highest level, or engaging in endless debates over sporting greatness, I find competition, intellectual or athletic, deeply compelling.

My journey in MUN began relatively late, in the latter half of 9th grade. What started as a simple attempt to explore my interest in history quickly evolved into something far more meaningful. Through unconventional committees and crisis simulations, I was exposed to complex historical narratives, differing ideologies, and the constant necessity to adapt. More importantly, MUN shaped my confidence, sharpened my thinking, and forced me to articulate ideas under pressure. It is not merely a conference; it is a test of composure, clarity, and conviction.

However, what lies before you today is not a simulation driven purely by intellectual curiosity. It is a proceeding rooted in consequence.

This committee convenes to deliberate upon the question of whether Emperor Hirohito should be subjected to trial following Japan's surrender in World War II. You are not here to merely recount



history; you are here to interrogate it. The decisions you make will sit at the intersection of justice, accountability, political necessity, and moral ambiguity.

Was Hirohito a sovereign bound by circumstance, or an active participant in one of the most devastating conflicts in human history? Does justice demand punishment, or does stability demand restraint? And perhaps most importantly, who gets to decide?

As members of this Justice Committee, your role extends beyond rhetoric. You are expected to analyse evidence, construct legally and historically sound arguments, and respond to evolving situations with precision. Every statement you make carries weight. Every stance you take contributes to shaping not just the outcome of this trial, but the precedent it sets.

The coming sessions will challenge your ability to think critically, act decisively, and remain composed under pressure. Positions will shift, narratives will be contested, and certainty will often be elusive.

The question, delegates, is not whether history will be judged.

The question is, **how will you choose to judge it?**

I wish you all the best.

Vivan Balhara

Director

The Tribunal of the Fallen Sun



“True peace is not merely the absence of tension, it is the presence of justice”

- Martin Luther King Jr.



Greetings Advocates,

It is truly an honour to welcome you all to The Tribunal of the Fallen Sun for the fourteenth edition of Sanskriti MUN. I am Aarav Gupta and am proud to serve as your Additional Director for this committee. I would like to begin with a mellower topic than the iconic Axis vs Allied powers fight, and would like to start by telling you a bit about myself.

I am currently studying in class 11, pursuing subjects like Physics, Chemistry, and Maths along with Economics. Apart from these heavy and intense subjects, I was born with a love for true speed, which is complemented by an unhealthy addiction to motorsports and aviation. From praying at 2 a.m. for a Ferrari win at Mexico GP to comparing the Radar

sizes of the F22 and Su57, I have done it all. Other than this, you can find me timing my 100-meter dashes, mastering three-pointers like Curry, practising some tunes on my keyboard or learning every line from Suits (Honourable Mentions: The Office and Modern Family) like it is the Gutenberg Bible.

Moving on to my MUN journey, which started taking shape in 8th grade before solidifying in 9th grade. Over the years, I have participated in a plethora of MUNs ranging from fast crisis-type to slow, concrete solution-oriented committees, but never have I entered a committee undermining myself. The most prominent committee in my MUN career has been the Specialised Committee, which, over the span of three MUNs, has helped me build my base for debating. Now starting a new chapter in my MUN journey, I am just as eager as you all for this inaugural session of The Justice Committee.

Moving onto the sensitive issue of addressing the wrongdoings of both Allied and Axis powers, all delegates as advocates need to put forward meaningful accusations against one another and hold each

other accountable, but remember that accusations in the absence of proof are meaningless. As part of the Executive Board, I expect delegates to foster collaboration, highlight key issues, present their extensive research in a meaningful way and truly question each and every decision taken over the course of the Second World War. Whether you are an experienced delegate or a rookie, the Justice Committee will force you to take carefully considered decisions and justify your actions and their impact on the war.

With the presence of twists and turns along the way, which can flip perceptions, I expect the delegates to actively participate and bring forward their unique interpretations to the table, and highlight the essence of debating throughout the committee. Now, the duty of serving justice and setting an example for the future lies in your hands.

Lastly, I would like to leave you all with the quote

“To start something, stop at nothing.”

- Mattia Binotto

Regards

Aarav Gupta

Additional Director

The Tribunal of the Fallen Sun





"Oh, but history moves in such vicious circles."

- The Poppy War, RF Kuang

Greetings, Delegates!

It is with unrelenting pride that I introduce myself to you as your Additional Director for the Justice Committee of Sanskriti MUN, 2026. My name is Aashi Chaure, and I'm currently studying Political Science, Sociology, Mathematics and Economics in 11th grade. My interests in all things historical, political and sociological stem from a default curiosity in everything human.

This is also what drives me to try to read every good book I can get my hands on. What began with Percy Jackson, and has now snowballed into Babel by RF Kuang, and anything by Austen taking space at the top of my bookshelf. Going Triple Platinum on my Spotify are the likes of Mitski, Chappell Roan, Dominic Fike, and of course, Tyler, the Creator. Brooklyn 99, Supernatural and Modern Family are always on my current watching list.

My MUN journey began in 8th grade, with Crisis, and has since led me to an array of committees and an array of agendas. From hypnotising Putin to dancing to Single Ladies for paperwork, I've survived the enriching experience of a fast-paced committee. If there is anything I've learned in these four tumultuous years, it's the importance of a choice: every decision you make, no matter how minute, avalanches into something greater. Whether it be how quickly you respond in committee, choosing the agenda of your liking, or something as simple as the emotions you emanate in a speech, makes all the difference. So make your decisions, and make sure you stick to them too, with as much courage and confidence as you can gather.



You, delegate, now stand on the precipice of justice. The innumerable sins of both the Allied and Axis now await trial in this historical court. It rests on you to correct your own fate. In the face of Lady Law, you must dictate and defend your position, and interpretation of responsibility. It is with great excitement and expectations that I welcome you to the Tribunal of the Fallen Sun.

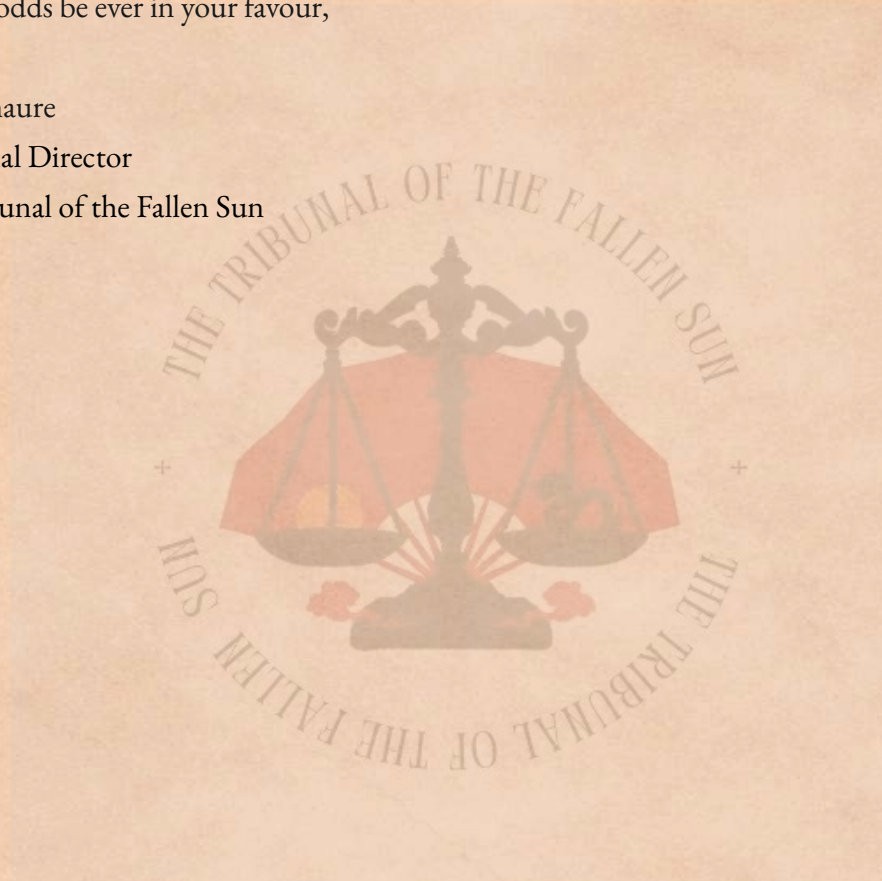
May the odds be ever in your favour,

Signed,

Aashi Chaure

Additional Director

The Tribunal of the Fallen Sun



"In this chamber, no rank, no office, and no allegiance can shield one from the judgement of law and conscience"



Greetings, Delegates,

It is my pleasure to welcome you to the Justice Committee at SMUN 2026. I am honoured to be a member of your Executive Board for this committee. My name is Jaivir, and I am currently in grade 11, studying Physics, Chemistry, Mathematics, and Economics.

My journey to model the United Nations began at an intra-school conference a few years ago. I still remember walking into my first committee as a nervous individual, unsure of what to expect.

Representing the Philippines in the Disarmament and International Security Committee, I slowly began to understand how debate, diplomacy, and collaboration come together in an MUN setting. That first experience and interest, which gradually grew into a love for debates on global affairs in the MUN format.

Since then, over the course of ten MUNs, I have experienced a variety of committees. From traditional committees to fast-paced crises, simulations, each experience teaching me something new. Over time, I realised that crisis style suited me the best, as it required quick thinking, adaptability, and the ability to respond effectively in uncertain situations.



Outside of MUNs, I am an average athlete who plays numerous sports, including football, basketball, tennis, and even participates in competitive equestrian events. Football, in particular, is something that is very close to my heart, and I have often spent many sleepless nights watching Real Madrid play. I also enjoy watching television series, with Brooklyn 99 as a personal favourite.

The Justice Committee differs from the usual historical simulations set in 1945, as it focuses not only on the events but also involves an evaluation of responsibility through a legal and analytical lens. Through proceedings, trials and moderated debate, delegates will be required to engage with historical facts, legal reasoning, and moral responsibility.

Delegates should be prepared for a committee that goes beyond prepared speeches. This committee will test your research, your ability to question and define arguments and your understanding of historical context. Regardless of your prior experience, I hope this helps you gain a deeper perspective on justice, accountability, and decision-making moments of global consequence.

I look forward to seeing engaging debate, thoughtful arguments, and active participation throughout the committee.

Warm Regards,
Jaivir Dhingra
Additional Director
The Tribunal of the Fallen Sun



About The Committee

Upon Japan's surrender in August 1945, the fighting stopped, but the consequences of the war still remained deeply embedded and very much present. Large parts of Asia and the Pacific had been reshaped by years of military campaigns and political decisions. Cities had changed, borders were altered, and millions of people had been affected in unimaginable ways. In the aftermath of the conflict, attention slowly shifted from military strategy to the decisions that had been made by those in positions of authority.

The people brought before the tribunal were those individuals who had held major leadership roles during the war. This included Prime Minister Hideki Tojo, senior military commanders, and members of the wartime government. The position of Emperor Hirohito was also a subject of discussion because he held political authority as well as a symbolically important status. A significant portion of the arguments focused on how decisions were taken inside the government and military system.

Questions were raised about who had the authority to give orders, how these orders were followed and executed, and to what extent accountability and responsibility could extend in a structure that spanned across multiple levels of command.

This committee revolves around the same idea and principle of legal examination. Delegates do not act as diplomats trying to negotiate or form alliances in the usual way. Instead, they act as advocates within a courtroom-style setting. Based on their assigned portfolios, they are divided into the prosecution and the defence. The role is to present arguments, challenge the claims of the opposition, and support their position using historical evidence and legal reasoning.

This committee begins with the roll call to confirm participation in the tribunal. The opening statements will follow, allowing both sides to explain how they understand the situation and what

direction their arguments will take. The statements will be delivered without interruption, allowing each side to present its case clearly before being questioned by the others.

After this stage, delegates must collaborate within their respective sides to prepare memorials. The memorials are written documents that explain their arguments in a structured and comprehensive way, outlining how each side interprets the actions taken during the war and the extent of responsibility involved. When these memorials are presented, they will formally place each side's case on record before further proceedings take place.

Witness examination is one of the most important parts of the committee. Delegates may request witnesses through communiqués, after which both sides will have the opportunity to question the witnesses. This process will enable the advocates to ask for clarification, challenge statements, and test the consistency of different explanations. Instead of relying only on long speeches, this process will shift the focus to evidence-based reasoning and critical analysis.

The proposed Tokyo Trials, therefore, may be one of the first serious attempts to deal with the consequences of a major war through a legal framework rather than only through political decisions. Questions will be raised about leadership, authority and responsibility that may not have simple answers and remain open to interpretation.

This committee does not aim to recreate or replicate the trials exactly or reach a single definitive conclusion. Its purpose is to provide a platform to work through these issues through structured argument and procedure.

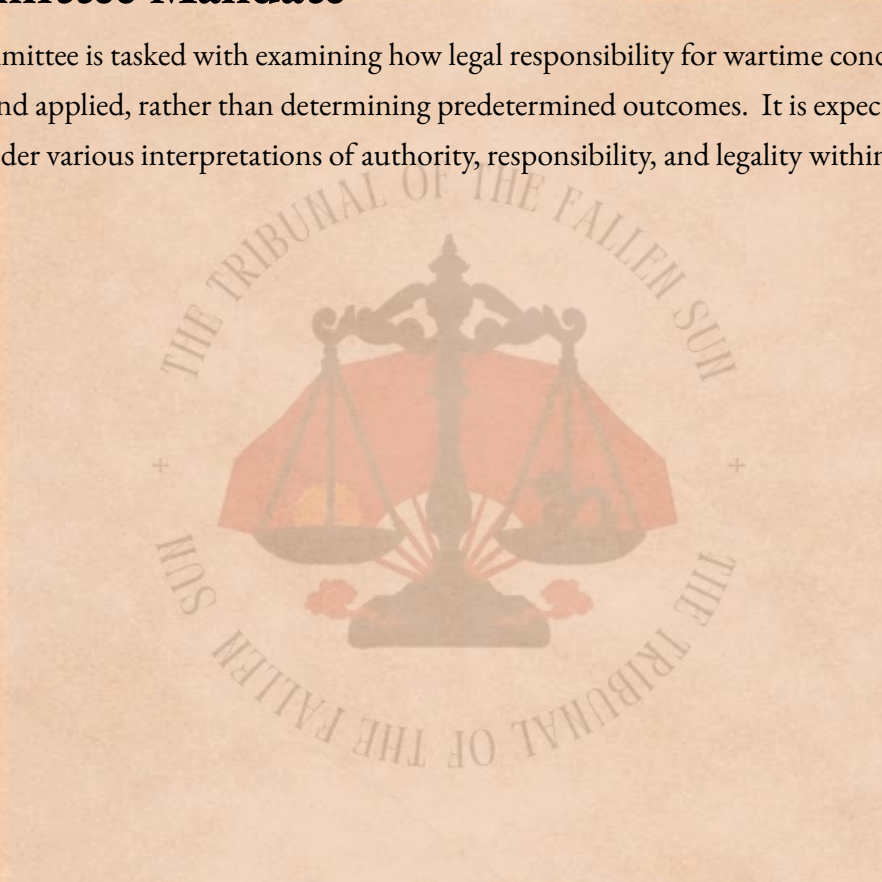
Through this format, history will be examined rather than simply described or narrated. Through this format, history will be examined rather than simply described or narrated. Delegates will engage with historical events using legal reasoning and evidence-based argument. The committee is designed to prioritise structured analysis over narrative description.

This committee is set in the immediate aftermath of the Second World War, at a point where formal trials have not yet commenced. The delegates are required to discuss the possibility of conducting these

trials, the degree to which they are possible, and the extent to which political considerations should influence legal proceedings. The outcomes of prosecution, the individuals to be tried, and the nature of responsibility remain open questions to be debated within this committee.

Committee Mandate

This committee is tasked with examining how legal responsibility for wartime conduct should be defined and applied, rather than determining predetermined outcomes. It is expected that all delegates will consider various interpretations of authority, responsibility, and legality within this framework.



Sources of International Law

International law governing armed conflict has evolved significantly over time, reflecting changes in the nature of warfare, state sovereignty, and the global community's understanding of justice and human rights. In the early twentieth century, key agreements such as the Hague Conventions and later the Geneva Conventions began to codify rules regarding the conduct of war, treatment of prisoners, and protection of civilians. Following the devastation of the Second World War, the adoption of the United Nations Charter marked a turning point, establishing a broader legal framework aimed at maintaining international peace and security while reinforcing principles of state responsibility. Together, these instruments illustrate the gradual development of international law from a system primarily regulating state behavior to one that increasingly incorporates accountability, interpretation, and evolving norms of humanitarian conduct. Following are the important treaties which hold relevance to the committee apart from the charter given in the background guide - :

The Hague Convention on the Laws and Customs of War on Land (1907)

The Hague Convention of 1907 was adopted at the Second International Peace Conference on 18 October 1907. Along with the Geneva Conventions, it is one of the earliest, most detailed instruments regarding the laws of war in the context of this trial. There are detailed rules concerning the conduct of hostilities, the treatment of prisoners of war, and the responsibilities of the occupying powers in its annexed regulations.

The main principle of the Hague Convention IV, formulated in Article 22 of the Regulations is that the means by which belligerents wage war are not unlimited. Initially this idea placed a legal constraint on the conduct of warfare, emphasising that even in conflict certain standards must be upheld.

The Convention also prohibits practices such as the use of poison or poisoned weapons, the killing or wounding of enemy combatants who have surrendered and the destruction of property that is not justified by the military. The provision establishing that the belligerent state may be held accountable for acts committed by individuals forming part of its armed forces is particularly significant. It introduces the basic idea that actions carried out by military personnel may carry implications beyond the individuals directly involved extending upward through structures of command.

Japan was a signatory to the Hague Convention of 1907, and its provisions were therefore applicable to its conduct during the war. Delegates, therefore, need to assess whether these conventions remained in force and how they can be used in discussions of responsibility, especially in relation to a hierarchical military system.

The Geneva Convention Relative to Treatment of Prisoners of War (1929)

The Geneva Convention was signed on 27 July 1929 in Geneva and came into effect on 19 June 1931. This Convention expanded earlier provisions by establishing clearer standards for the treatment of prisoners of war. This Convention laid down the need for humane treatment, prohibitions against reprisals and collective punishments against prisoners.

It regulated the conditions of prisoner labour, and the need for humane treatment and inspection by neutral organisations such as the International Committee of the Red Cross to inspect the prisoners of war camps. These regulations emphasise the importance of accountability and transparency in the conduct of war.

The Convention was signed by Japan but was not ratified by it before the Second World War. As a result, the 1929 Geneva Convention Relative to the Treatment of Prisoners of War cannot be treated as fully binding treaty law upon Japan in the same way as it was upon ratifying states. However, Japan

remained bound by other applicable rules of the law of war, including the Hague Convention IV of 1907 and related customary principles concerning the treatment of prisoners and the conduct of hostilities.

There is substantial evidence indicating widespread mistreatment of prisoners by Japanese forces during the war. Delegates should therefore distinguish carefully between obligations arising from the 1929 Geneva Convention, which Japan did not ratify at the time, and obligations arising from Hague law, customary international law, official undertakings, and the factual conduct of Japanese authorities during the conflict.

It should be noted that the prosecution may argue that Japanese practice violated standards reflected in the 1929 Convention, and that those standards are relevant as evidence of accepted humanitarian expectations. The defence, however, may argue that non-ratification limits the Convention's direct treaty force against Japan. Delegates must therefore avoid assuming that the 1929 Convention, by itself, was automatically binding upon Japan in full treaty form.

The Kellogg-Briand Pact (1928)

The Kellogg-Briand Pact, also known as the Pact of Paris was an international agreement signed by nations all over the world to renounce war and settle disputes more peacefully. It was signed by 62 nations to prevent another world war, however, it proved limited in effectiveness due to the absence of enforcement mechanisms.

This agreement, officially known as the General Treaty for the Renunciation of War as an Instrument of National Policy, was signed in Paris on 27 August 1928 and became effective on 24 July 1929. Japan was among its first original fifteen signatories. Signatory states promised not to use war to resolve disputes or conflicts of any nature or origin that would arise among them.

The Kellogg-Briand Pact is often regarded as an important step in the evolution of international law because it formally condemned recourse to war as an instrument of national policy and required disputes to be settled by pacific means. However, the Pact did not itself establish explicit mechanisms of enforcement, nor did it expressly provide that individual political or military leaders would incur criminal liability for violating it.

For the purposes of this committee, the Pact is therefore relevant as an important legal and diplomatic reference point in debates about aggression, but not as a complete or uncontested criminal code. One of the central legal questions arising after the war was whether the renunciation of war in inter-state treaty law could properly be transformed into individual criminal responsibility for leaders who planned, initiated, or waged aggressive war.

Delegates are encouraged to consider both positions carefully. One view is that the Pact helped establish that aggressive war was unlawful in international relations and therefore contributed to the later development of the concept of crimes against peace. The opposing view is that, because the Pact did not expressly criminalise aggression at the individual level, any attempt to impose such liability after the fact raises serious concerns regarding retroactivity and legal certainty.

The Nine-Power Treaty (1922)

The Nine-Power Treaty was concluded on 6 February 1922 at the Washington Naval Conference, and was signed by the United States, the United Kingdom, Japan, France, Italy, Belgium, the Netherlands, Portugal, and China. The treaty declared the sovereignty and territorial integrity of the Republic of China.

The Nine-Power Treaty also intended to make the Open Door Policy international law. All signatory states pledged that they will respect the independence of China, by refraining from seeking special privileges within its territory. They also pledged to consult each other in the event of a dispute related to Chinese sovereignty.

The subsequent actions of Japan made this treaty an important part of the broader diplomatic and legal context within which Japanese conduct in China may be evaluated. The Nine-Power Treaty is relevant because it reflected international commitments concerning the sovereignty and territorial integrity of China. However, delegates should be careful not to treat breach of this treaty, by itself, as automatically creating individual criminal liability for particular leaders.

The Nine-Power Treaty lacked strong enforcement provisions, and when Japan violated its terms or spirit during its actions in Manchuria and later in China, the international response was politically limited. For that reason, the treaty is best understood as evidence of international commitments and diplomatic obligations, rather than as a self-sufficient criminal-law instrument.

Delegates are therefore encouraged to use the Nine-Power Treaty as part of the factual and legal background relating to aggression, especially in demonstrating that Japan had undertaken obligations toward China which were later disregarded. Whether and how such breaches contribute to individual criminal responsibility remains a separate legal question that must be argued rather than assumed.

The Potsdam Declaration (26 July 1945)

The Potsdam Declaration was issued jointly by the United States, the United Kingdom, and the Republic of China on 26 July 1945. It was the ultimatum that defined the terms under which the Allied Powers would accept Japan's surrender.

The Potsdam Declaration was not a treaty in the formal sense when it was issued. It was an ultimatum and proclamation setting out the terms upon which the Allied Powers were prepared to accept Japan's surrender. Its importance to this committee lies in the fact that it defined the political and legal framework within which surrender, occupation, demilitarisation, and the punishment of war criminals were later pursued.

The Declaration stated that stern justice would be meted out to war criminals, including those who had committed cruelties against prisoners. It also called for the elimination of militarism, disarmament, occupation, and democratic reform. However, delegates should note that the Declaration did not itself provide a complete code of criminal offences or fully resolve later controversies regarding the legal basis, scope, or fairness of post-war trials.

Japan accepted the Potsdam terms through the surrender process, and the Instrument of Surrender committed the Emperor, the Japanese Government, and their successors to carry out those provisions in good faith. This gave the Declaration major practical and legal significance after acceptance. At the same time, delegates should recognise that acceptance of surrender terms does not automatically eliminate all legal objections that might be raised regarding the structure or legal theories of the post-war tribunals.

These five treaties and declarations together represent the core treaty framework within which this committee must operate. Other agreements of potential relevance exist, including the Hague Convention II of 1899, the earlier Geneva Conventions of 1864 and 1906, the League of Nations Covenant, and various bilateral arrangements between Japan and the Allied Powers.

Delegates are encouraged to research, refer to, and cite any additional treaties and declarations that they deem are relevant to their positions. However, full understanding of these five documents above will provide sufficient foundation for substantial legal debate during the committee.



Historical Background

Political Framework

By the late 1930s, international relations were defined by rising tensions among different major world power. Disagreements over territories, political influence, economic security and ideological differences slowly pushed different states on two different sides towards confrontation. These tensions did not emerge suddenly during the Second World War; they were an outcome of a prolonged period of tension and instability following the First World War, intensified by economic crisis and the rise of the imperialist regimes.

When these issues escalated, leading to what is referred to as the Second World War, different states had to make a choice in this extremely polarised global environment, thus forming different alliances. Some states were already involved in a multitude of issues, such as regional conflicts, even before World War II began, while others joined later, especially in response to military aggression or because of a strategic alliance. Thus, different countries slowly began cooperating with one another, despite their political differences, as their strategic interests outweighed the ideological differences, especially as World War II continued.

This led to the formation of two power blocs. As different nations formed alliances, this created what is referred to as the Allied Powers, which included countries such as the United States of America, the United Kingdom, the Soviet Union, and the Republic of China. The Allied Powers opposed the other power bloc called the Axis Powers, which included Nazi Germany, the Kingdom of Italy, and the Empire of Japan. The alliances were not merely military arrangements but were formed due to political structures, leadership styles and strategic priorities of the states that were involved. Therefore, the

decisions of the political leaders of different states played an important role in determining the way in which World War II happened.

Therefore, understanding the different political issues faced by these nations is important, as the decisions taken by their leader, whether based on ideology or opportunity, played a critical role in shaping the course of the war. The political framework of different states is as follows:

THE ALLIED POWERS

The Allied powers consisted of the nations that formed an alliance to resist and fight against the Axis powers during the war. While some countries, such as the United Kingdom, took part in the War right from the beginning in 1939, others, including the United States and the Soviet Union, joined later.

Despite differences in governance, as they ranged from liberal democracies to communist states, the Allied Powers were united by a common goal as they wanted to curb the expansion of the Axis Powers and wanted to restore international stability. The political framework of these countries not only influences their internal decision-making but also plays an important role in how they strategised, prioritised and interacted with one another throughout the war.

A. The United States of America

The United States, under the leadership of President Franklin D. Roosevelt, operated as a federal democratic republic in which the political power was distributed among the executive, legislative and judicial branches. In the late 1930s, America's government was aware of the growing conflict in Europe and Asia but decided not to take part in the War at first. This is because most Americans felt that their government should not take part in another World War, given their experience in the First World War.

So in the years leading up to the war, American foreign policy was shaped mainly by isolation, influenced by their experience in the First World War and the economic hardships of the Great Depression. Although the United States remained neutral formally during the early years of the

conflict, it supported the Allied powers through economic and material assistance via the Lend-Lease Act.

However, this changed in December 1941, when the Japanese Empire attacked the United States Naval Base at Pearl Harbour. This attack resulted in heavy destruction of military assets and loss of life in America. In response, the American government declared war on Japan. Later, Nazi Germany and Italy declared War on America, which led to America's involvement in the War. Once America joined the War, the United States were working hand in hand with the governments of other Allied Powers.

The United States developed its industrial capability and military production facilities at a rapid pace to provide support for the European and Asian theatres of war, becoming the central pillar of the war effort. President Roosevelt held numerous meetings with Allied leaders to plan their war strategies.

B. The United Kingdom

The United Kingdom is a Constitutional Monarchy, where the monarch serves as the ceremonial head of the state, while the executive authority is exercised by the elected government led by the Prime Minister. The Prime Minister at the time was Winston Churchill. Churchill urged people to be resilient and stay united in a period when the rest of Europe had already been taken over by the German army. This was particularly important during periods when Britain faced threats of invasion and sustained aerial bombardment during the Blitz. His speeches and messages played a significant role in keeping the morale of the people high and maintaining a collective sense of purpose among the British population.

The United Kingdom joined the war in September 1939 after the German army invaded Poland. This was because Britain had previously promised to defend Poland's sovereignty. However, after seeing the German army enter Poland, the United Kingdom and France declared war on Germany. In the early years of the conflict, the United Kingdom emerged as the principal force that resisted the expansion of Axis powers in Europe, especially after the fall of France in 1940, which left Britain isolated against Nazi Germany in Western Europe.

During this period, the British government was busy planning strategies balancing defence at home with strategic commitments abroad. The British government managed significant war efforts, such as the centralisation of the national economy, rationing of vital goods, and expanding war production. These efforts were the result of the increasing control of the British government over the war and the lives of citizens. The political system, even though democratic, was also under exceptional circumstances, as the executive held considerable power and different institutions cooperated for the sake of efficiency and survival.

In the international sphere, Britain played an important role in managing the coordination of the Allied forces. The British government, along with the governments of the United States and the Soviet Union, despite their ideological differences, coordinated strategies with each other. Churchill played a significant role in the conferences with Roosevelt and Stalin, where they negotiated and planned strategies for the war.

Furthermore, Britain's colonial empire worldwide also contributed to its capacity to fight in the Second World War. For example, its colonies and dominions, including India, Canada, Australia, and many others, contributed significantly to its capacity to fight in the Second World War. This aspect added to the complexity of its position as it claimed to be fighting for freedom while it still controlled its colonies.

Generally, the political system of the United Kingdom during the Second World War can be viewed as one that was marked by centralised leadership, democracy in crisis, and international cooperation. Its actions and alliances contributed significantly to defining the Second World War and its outcome.

C. The Soviet Union

Joseph Stalin assumed leadership over the Soviet Union during this time period. This situation required Stalin to exercise a highly centralised authority and to handle all aspects of military and government decision-making for the Soviet Union.

During this initial phase of war, the Soviet Union planned a strategic move to delay direct conflict with Nazi Germany. They signed the Molotov-Ribbentrop Pact in August 1939, a non-aggression pact between the two nations. This pact had secret protocols that divided Eastern Europe into spheres of influence. This allowed Nazi Germany and the Soviet Union to increase their territorial control without getting into a conflict. As a result, the Soviet Union occupied parts of eastern Poland, the Baltic states, and parts of Finland and Romania.

This strategy ended in June 1941 when Nazi Germany began Operation Barbarossa, a large-scale invasion of Soviet territory. This was a major turning point in history as it led to the direct involvement of the Soviet Union in the war against the Axis Powers. In response to this invasion, the Soviet Union started an extensive mobilisation of its resources. Factories were relocated to avoid capture, and the economy was restructured to increase war production.

The Soviet Union operated under a communist regime at that time since Stalin made government policies according to communist belief systems. The Soviet Union had established a treaty with Nazi Germany during World War II, known as the Molotov-Ribbentrop Pact, which both sides signed in 1939. The treaty established a mutual non-aggression pact which obligated both nations to maintain peace between them, while securing strategic advantages in Eastern Europe. The German army invaded Soviet Union territory in June 1941, which marked the end of the alliance between the two nations.

The Soviet Union chose to fight alongside the Allied forces after German troops invaded their country. The Soviet Union government initiated multiple military operations against German forces. The government held numerous discussions with Allied leaders to coordinate their military efforts. The meetings were organised to establish war strategies and to discuss matters that would become relevant after the conclusion of the war.

D. The Republic of China

The government of China was led by Chiang Kai-shek during this period. This government was a result of the nationalist movement, which was referred to as the Kuomintang (KMT). The main goal

of the Chinese government was to consolidate power, restore political stability after decades of internal fragmentation, unite the country and establish a strong unified state.

China had already been at war with the Empire of Japan since 1937, after the escalation of the Second Sino-Japanese War. Following the Marco Polo Bridge Incident near Beijing, the Second Sino-Japanese War initially began as a localised conflict. However, it eventually turned into a large-scale conflict, representing one of the earliest and most important events of the Second World War. The Japanese military undertook large-scale military operations across Eastern China, capturing important Chinese cities such as Shanghai and Nanjing. The military actions led to extensive destruction and harm to Chinese civilians.

In spite of the military, economic, and administrative challenges, the Chinese government resisted Japan's expansion. The prolonged nature of the Second Sino-Japanese War had put immense pressure on China's resources and population. However, in maintaining stability within China, Chiang Kai-shek had to balance the threat of political divisions within China.

In terms of politics, China held an important position as part of the Allied Powers, especially when viewed within the Asian theatre. As one of the main nations that resisted the Japanese Empire's territorial ambitions, China played a significant role in keeping the Japanese military engaged and preventing them from intervening anywhere else. Chiang Kai-shek tried to build relationships with other Allied leaders, seeking military and financial aid, as well as international recognition of China's position during the war. This included participation in major discussions where China was recognised as one of the main Allied Powers.

The political situation of the Republic of China during the Second World War is viewed as having been shaped by the threat of external invasion and internal division. This was a complex situation, as China had to navigate these complex military and political issues while keeping its position within the Allied alliance.



THE AXIS POWERS

During the period leading up to and during the time of World War II, several countries entered into a political and military alliance that later became known as the Axis powers. Although the countries had their own individual goals and means of operating their governments of the countries, the leaders of the countries worked together during the war and supported one another in several military battles. The most prominent countries in the political and military alliance were Nazi Germany, the Kingdom of Italy, and the Japanese Empire. The leaders and the means of operating the governments of the countries played a major part in the determination of the war.

A. Nazi Germany

Adolf Hitler consolidated his dictatorship over Germany after he was appointed Chancellor in 1933. He gradually transformed Germany into a totalitarian regime. He used legal means, political oppression, and propaganda to eliminate all opposition and establish a one-party system in Germany. Under this system, all political powers were centralised under his leadership. The institutions of democracy were abolished, and there was a curtailment of civil liberties and opposition to his rule through means such as censorship and the use of security forces, such as the Gestapo and SS.

The political system of Nazi Germany was greatly influenced by the ideology of Nazism. Nazism is an extreme nationalist and racist ideology. The Nazi regime was based on extreme nationalism and racism. The Nazi regime in Germany was not only interested in dominating German politics but was also interested in transforming German society to suit its ideological objectives. This included fostering expansionist ambitions and desires for “Lebensraum,” or living space, and persecuting undesirable elements.

Germany’s foreign policy became more and more aggressive in the 1930s, and its major aim was to revise the Treaty of Versailles and gain more territorial control. Among the major actions that Germany took to achieve its aim was the reoccupation of the Rhineland in 1936. Germany then proceeded to annex Austria in 1938 through an event known as the Anschluss. Later in 1938, Germany acquired the

region known as the Sudetenland from Czechoslovakia through the Munich Agreement. Germany then proceeded to invade the rest of Czechoslovakia in 1939.

These actions caused widespread uncertainty and concern among other European powers because Germany's actions showed that it was abandoning diplomacy and international agreements. The inability of other powers to respond to Germany's actions contributed to the unstable nature of international relations.

The situation culminated in a crisis when, in September 1939, Germany launched its attack on Poland. This attack was characterised by the use of swift military strategies referred to as Blitzkrieg. This attack by Germany prompted both France and Britain to declare war on Germany, thereby commencing the Second World War.

In conclusion, the political system of Nazi Germany can be described as a system characterised by authoritarianism, ideology, and imperialism. The actions of the government of Nazi Germany not only had a significant impact on the course of the war but also had significant implications for the international scene and the concept of accountability.

B. The Kingdom of Italy

Italy was governed under the fascist dictatorship of Benito Mussolini, who had come to power in 1922 and gradually and progressively dismantled parliamentary governance and political opposition. Under Mussolini's regime, certain political changes occurred such as political parties other than the National Fascist Party were banned, the press was censored, and the state was organised around the principles of absolute authority and under the pretext of national expansionism. Mussolini's foreign policy was driven by the ambition to build a modern Italian empire which was comparable in prestige to ancient Rome.

Italy's expansionist intentions were demonstrated and displayed clearly in 1935 when it invaded Ethiopia in the Second Italo-Ethiopian War, leading to the conquest of a sovereign African state in

spite of its condemnation by the League of Nations. Italy later aligned formally with Nazi Germany through the Pact of Steel in May 1939. Post signing the Pact, it entered the Second World War in June 1940, following the German advance into France. Italy's military performance proved consistently poor.

Following repeated defeats in North Africa and the Allied invasion of Sicily in July 1943, Mussolini was deposed by the Italian Grand Council. Italy signed an armistice with the Allies in September 1943. It later declared war on Germany and fought alongside the Allied forces for the remaining part of the conflict.

C. The Empire of Japan

Of all the states considered within this political framework, the Empire of Japan needs the most detailed examination. The Empire of Japan's political structure, its constitutional position and personal role of Emperor Hirohito, the conduct of its military forces, and the decisions that led to and characterised Japan's prosecution of the war are the central and key subjects of this committee's mandate.

A. Political Structure and the Role of the Emperor

Japan's political system was governed by the Meiji Constitution of 1889, which vested formal sovereignty in the Emperor. Under this constitutional framework, the Emperor was the formal sovereign head of the state. He held supreme command of the Army and Navy, and possessed constitutional authority relating to war, peace, treaties, and the appointment of ministers. He was also described in the Constitution as "sacred and inviolable." In formal legal terms, these provisions placed the Emperor at the apex of the constitutional order.

At the same time, delegates should distinguish between formal constitutional authority and the practical operation of government. The Japanese wartime system functioned through a complex interaction among the Emperor, the Cabinet, the military high command, the Privy Council, and

other institutions. For that reason, the existence of broad constitutional authority does not by itself resolve the separate question of how far the Emperor exercised effective control over specific decisions, operations, or atrocities.

In practice, the operation of the Japanese state was considerably more complex. Real political authority was distributed among overlapping institutions, which included the Cabinet, the Imperial General Headquarters, the Privy Council, and the senior elder statesmen. Of particular significance was the practice known as "Supreme Command independence," by which the military high command, and particularly the Army and Navy General Staffs, enjoyed an institutional autonomy that permitted them to form and implement military policy with limited civilian oversight or interference. It may be argued that entrenched military autonomy limited the practical extent of imperial control. This structural feature allowed the military to pursue objectives abroad that the civilian government had neither fully authorised nor was politically capable of reversing once undertaken.

Hirohito, known posthumously as the Showa Emperor, ascended to the Chrysanthemum Throne on December 25, 1926. He was formally enthroned in November 1928. His reign, designated the Showa era, which meant Enlightened Harmony, would ultimately span over six decades, though its early years were defined by the progressive domination of the Japanese state by the military.

B. The Rise of Japanese Militarism

The 1930s saw the systematic erosion and depletion of political authority of the civilian population in Japan as it was slowly replaced by military-dominated governance. In September 1931, officers of the Japanese Kwantung Army orchestrated the Mukden Incident, which was a fabricated act of sabotage on the South Manchuria Railway. This served as the pretext for the invasion and occupation of Manchuria. This was eventually reorganised as the puppet state of Manchukuo.

The government in Tokyo had not authorised this operation, yet it was ratified after the fact, which illustrates the military's capacity to create conditions that the civilian government was politically too weak to reverse.

In February 1936, a faction of radical junior army officers carried out an attempted coup known as the February 26 Incident, in which they assassinated several senior government officials and occupied key buildings in Tokyo. The rebellion was suppressed on the Emperor's direct orders, and the ringleaders were executed. However, the incident paradoxically consolidated military influence over the government, as civilian politicians became increasingly unwilling to oppose military initiatives.

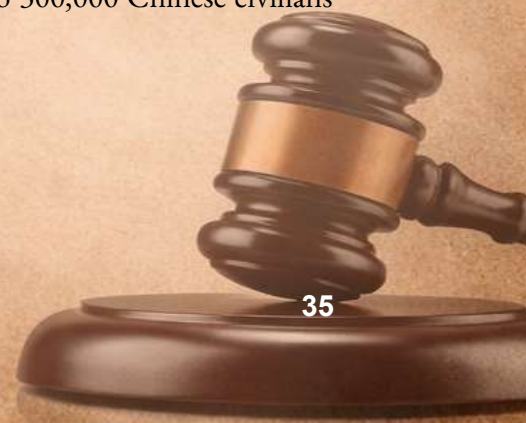
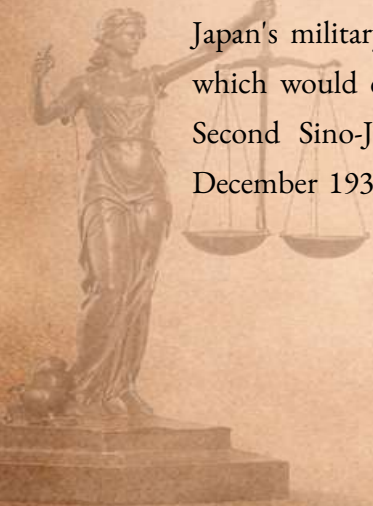
By the late 1930s, the Japanese Cabinet was effectively dependent only on the approval of Army and Navy leadership, and a succession of passive and politically compliant prime ministers strengthened the dominance of the military over state decision-making.

The question about the precise relationship of Emperor Hirohito to this process of militarisation, and to the specific decisions that it had produced, is among the most contested and challenged in the historiography of the war. Documented records and post-war research have confirmed that Hirohito was carefully informed about the military operations, asked detailed questions, and on certain occasions intervened directly in important decisions pertaining to operations.

At the same time, it is still debated whether his questions and occasional doubts actually limited decisions or counted as real opposition. It may also be argued that entrenched military autonomy limited the practical extent of imperial control. This remains a central issue for examination within the committee.

C. Japanese Expansion and the Record of Atrocities

Japan's military expansion across Asia was accompanied by systematic atrocities on a massive scale, which would constitute the key evidence at the post-war trials. Following the full outbreak of the Second Sino-Japanese War in 1937, Japanese forces committed the Nanjing Massacre between December 1937 and January 1938, during which an estimated 200,000 to 300,000 Chinese civilians



and prisoners of war were killed, and tens of thousands of women were subjected to widespread sexual violence. This event is one of the most extensively documented atrocities of the war.

Beyond the events at Nanjing, the conduct of the Japanese military across occupied territories included the use of biological and chemical weapons, and lethal experimentation on humans conducted by Unit 731 in Manchuria. There is substantial evidence of the systematic sexual enslavement of women from territories that had been occupied by them, forced mobilisation of civilian labour under conditions that amounted to enslavement, and routinely mistreated and executed Allied prisoners of war. All this has also been documented on a wide scale.

The Bataan Death March of April 1942, in which thousands of Filipino and American prisoners died due to extreme conditions of deliberate brutality during a forced march across the Philippines, also became a prominent and noticeable illustration of how the Japanese planned violations of the laws of war. Another perspective questions whether these violations reflected centralised policy or breakdowns in discipline.

The central legal and moral question for this committee is whether Emperor Hirohito, as Japan's constitutional sovereign and supreme commander, bore personal responsibility for these actions, whether through explicit authorisation, deliberate facilitation of institutions that caused it, or by taking responsibility for inaction in the exercise of authority that he possessed.

D. Japan's Entry into the Global War

Japan's decision to attack the United States and the Western colonial powers in Asia was the amalgamation of different factors, such as the strategic calculation about how to secure the resources necessary to sustain its war in China and to achieve regional dominance. On September 27, 1940, Japan formalised its alignment with Germany and Italy by signing the Tripartite Pact, creating the global Axis alliance.

As Japan expanded its presence in French Indochina in 1941, the United States, Britain, and the Netherlands responded by coordinating an oil embargo, which cut off approximately eighty per cent of

Japan's supply of oil and forced the Japanese leadership to choose between withdrawing from China or accepting a military seizure of oil-producing territories in Southeast Asia.

The leadership, under Prime Minister Hideki Tojo, chose to escalate the situation. On December 7, 1941, Japanese naval and air forces launched a planned surprise attack on Pearl Harbour, and simultaneously they initiated military operations across Southeast Asia, targeting British Malaya, Hong Kong, the Philippines, and the Dutch East Indies.

Hirohito formally approved the decision for war and issued the Imperial Rescript declaring war against the United States and the British Empire. In the initial phase of the Pacific War, Japan rapidly achieved extensive territorial gains across the Asia-Pacific region, establishing an empire that at that time stretched from the Aleutian Islands in the north to the borders of India in the west and deep into the central Pacific.

E. Japan's Defeat and Surrender

The situation of the Pacific War turned decisively at the Battle of Midway in June 1942, where the United States Navy destroyed four Japanese fleet carriers and eliminated most of Japan's experienced naval air power. This permanently shifted the strategic balance of the war. From that point, the strategy of the Allied Powers of island-hopping progressively brought American forces very close to the Japanese home islands. At the same time, sustained naval blockades strangled and choked Japan's supply lines.

By the summer of 1945, Japan faced overwhelming military pressure from every direction. The campaigns for Iwo Jima and Okinawa inflicted catastrophic casualties on both sides. The bombing campaigns launched by America, including raids on Tokyo and other cities, were inflicting devastation not only on the industrial infrastructure but civilian population as well. On August 6, 1945, the United States dropped an atomic bomb on Hiroshima, killing an estimated 70,000 to 80,000 people immediately and many thousands more in subsequent weeks. On August 8, the Soviet Union declared

war on Japan and launched a massive invasion of Manchuria. On August 9, a second atomic bomb was dropped on Nagasaki.

On August 15, 1945, Emperor Hirohito made an unprecedented personal radio broadcast to the people of Japan, announcing that Japan would accept the terms of the Potsdam Declaration and call for an end to the war. This moment carries important implications for the questions before this committee. It was the first time most Japanese citizens had heard the Emperor's voice. But more importantly, it represented an unambiguous and direct exercise of imperial authority to terminate the war, especially over the factions within the military who opposed it and wished to continue fighting.

The fact that the Emperor could and did exercise this authority in August 1945 has been cited during the growing debate by many who argue that his failure to exercise similar authority earlier to prevent the war or curtail the commission of atrocities may constitute a form of culpable inaction. Japan's formal surrender was signed aboard the USS Missouri in Tokyo Bay on September 2, 1945, marking the official end of the Second World War.

F. Emperor Hirohito and the Question of Accountability

The occupation of Japan by the Allied Powers, which was directed by General Douglas MacArthur as Supreme Commander for the Allied Powers, immediately raised the question of whether Emperor Hirohito should be prosecuted for war crimes. The investigators of the war crimes have begun compiling a substantial documentary and testimonial record relating to the Emperor's role in wartime decisions. The opinion of the public under the Allied Powers, particularly in China, the Philippines, Australia, and the Netherlands, which had endured the direct consequences of Japanese military conduct, expressed strong support for prosecution. The Soviet Union and several other Allied governments reportedly argued that the role of the Emperor should be examined to ensure meaningful accountability.

MacArthur and the United States government had a different stand. The policy planners from the United States could judge that prosecuting or eliminating the Emperor's authority risked destabilising Japan, provoking resistance to their occupation in Japan, and destroying the administrative mechanism through which the Allied Powers most effectively exercised their authority. Hirohito's cooperation was considered essential to pacify the population of Japan and to ensure the occupation's broader objectives.

Therefore, it has been suggested that the United States might try to control whether Emperor Hirohito is made to face trial, which could lead him to continue playing a symbolic role in the restructured political system. Discussions regarding the constitutional changes have also commenced, which could alter the role of the Emperor in matters of war and the state.

Many senior Japanese military and political figures, including former Prime Minister Hideki Tojo, might be examined on their role and accountability in wartime decision-making. However, a critical question still remains regarding the extent to which responsibility may extend beyond these political figures and leaders.

There exists significant concern that proceedings may be influenced politically, and institutional mediation, particularly concerning the position of the Emperor, may occur. It is also unclear whether evidence relating to the involvement of the Emperor will be fully presented, whether witnesses will be able to testify freely on matters concerning the highest authority, or whether certain lines of inquiry may be restricted.

This uncertainty further gives rise to broader questions about the integrity and completeness of the legal process. Can accountability be considered comprehensive if potential areas of responsibility remain unexplored? To what extent should legal proceedings be shaped by political necessity, and where should the line be drawn between stability and justice? These unresolved questions form the central basis of this committee's deliberations.



Economic Framework

A. Pre-War Economic Development

Following the Meiji Restoration of 1868, Japan underwent a rapid and calculated process of industrialisation and westernisation. This was designed to transform the country from a feudal state into a modern imperial power. The government westernised the education system by sending thousands of students to Europe and the United States to study, while simultaneously also inviting foreign experts to assist and guide in building domestic institutions and industries. Investment in infrastructure was the most important pillar of this transformation. The railway networks were expanded, road systems were improved, and land reforms were introduced to integrate national markets and strengthen the authority of the state over the economy.

The state actively promoted the growth of the private sector through subsidies, protective tariffs, and preferential policies. This gave rise to the zaibatsu, which were immensely powerful family-controlled industrial conglomerates that came to dominate key sectors of the economy. The four most prominent were Mitsubishi, Mitsui, Sumitomo, and Yasuda. These industrial conglomerates together controlled vast portions of banking, manufacturing, mining, and trade. Their close relationship with the government blurred the line between state and corporate interest. This arrangement would prove central to Japan's capacity for wartime industrial mobilisation.

Following the First World War, in which Japan had participated on the Allied side and profited economically from supplying war materials, the country began a gradual but accelerating militarisation of its economic priorities. This process intensified sharply through the 1930s. The National General Mobilisation Law of 1938 gave the government authority to use labour, materials, capital, and industrial output for maintaining the military without requiring approval from the parliament. By the early 1940s, the economy of Japan had been effectively restructured as a war economy, with production by civilians subordinated to military requirements.

B. The Oil Crisis and the Road to Conflict

The most critical strategic vulnerability of Japan was its almost complete dependence on imported resources, particularly oil. The country lacked crucial domestic petroleum reserves and depended mainly on imports for approximately 90% of its oil consumption. In 1940 to 1941, Japan imported roughly about 37 million barrels of crude oil and petroleum products annually, the vast majority of which came from the United States, from the British-controlled territories, and from the Dutch East Indies.

On 26 July 1941, President Franklin D. Roosevelt signed an executive order freezing all Japanese assets in the United States. The British and the Netherlands governments responded swiftly with equivalent measures. This coordinated action effectively severed Japan's access to oil imports almost overnight, as the United States, Britain, and the Netherlands together controlled over 80% of global oil production, with a further significant share held by the Soviet Union, leaving Japan with no viable alternative commercial sources.

The embargo confronted Japan's military leadership with a stark choice: accept a strategic retreat from its expansionist ambitions in China and Southeast Asia, or seize the oil-rich territories of the Dutch East Indies and British Malaya by force. The decision taken was the latter, setting Japan on a direct collision course with the Western powers and drawing it into the broader global conflict.

C. Wartime Economic Strain

The demands of sustained warfare placed enormous pressure on the Japanese economy. Industrial output remained substantial through the early years of the Pacific War, but the structural weaknesses of an island nation dependent on maritime trade became increasingly exposed. American submarine

campaigns from 1943 onwards devastated Japanese merchant shipping, severing supply lines between the home islands and the resource-rich territories Japan had seized in Southeast Asia. Raw materials, food, and fuel imports fell dramatically.

From 1944, American strategic bombing campaigns targeted Japan's industrial heartland directly. Major cities, including Tokyo, Osaka, and Nagoya, were subjected to extensive firebombing raids, which destroyed factories, transport infrastructure, and entire urban districts. The firebombing of Tokyo in March 1945 alone killed an estimated 80,000 to 100,000 civilians in a single night and rendered over one million people homeless. Industrial capacity was severely degraded, civilian morale was badly shaken, and the urban workforce was increasingly displaced.

The war was also financed in large part through the rapid expansion of the money supply, and by 1945, inflation was rising sharply. Rationing had been extended to cover food, fuel, clothing, and most basic goods. The combination of supply shortages, currency debasement, and the destruction of productive capacity brought Japan's economy to the edge of collapse well before the formal surrender in August 1945.

D. Immediate Post-War Conditions

Japan's surrender on 15 August 1945 left the country in a state of profound economic ruin. The loss of all overseas colonies and occupied territories stripped Japan of the resource base and captive markets upon which much of its wartime economy had depended. Industrial capacity was severely degraded across the home islands. Cities were damaged or destroyed, infrastructure was in disrepair, and a significant portion of the urban workforce had either perished or been displaced. Agricultural production had also declined, partly due to the diversion of male labour to military service and the disruption of supply chains.

Inflation, which had been building throughout the war, accelerated rapidly in the immediate post-war period as the government continued printing currency to cover debts while output remained

suppressed. Food shortages became severe, and the prospect of widespread famine in the winter of 1945 to 1946 was a genuine concern among occupation planners.

The Supreme Commander for the Allied Powers (SCAP), headed by General Douglas MacArthur, assumed administrative oversight of Japan and began implementing a programme of economic reconstruction and structural reform, including the dissolution of the zaibatsu and land redistribution, though the full effects of these policies would take years to materialise.

Social Framework

A. Hierarchy, Authority, and the Imperial Institution

Japanese society was organised around deeply embedded principles of hierarchy and deference to authority, reinforced through Confucian values emphasising loyalty, filial piety, and respect for those in positions of power. These values were not merely cultural norms; they were actively institutionalised through law, policing, and state education. The Emperor stood at the apex of this hierarchical order. Emperor Hirohito was regarded as a divine figure, a direct descendant of the Sun Goddess Amaterasu, and therefore sacred in a way that placed him fundamentally beyond ordinary political accountability in the eyes of the Japanese public.

The state devoted a considerable amount of resources to cultivating and maintaining this perception. The Imperial Rescript on Education, issued in 1890, had established the new foundational ideology of the modern Japanese schooling system, which made loyalty to the Emperor and service to the nation a major moral obligation of every citizen. This doctrine shaped many generations of Japanese people way before the War in the Pacific region began. Challenging the authority of the Emperor was not merely discouraged, but it was criminalised. The Special Higher Police, Tokkô, which was referred to

colloquially as the "thought police," were charged specifically for suppressing the people who disagreed politically, for monitoring revolutionary thought, and for prosecuting those who criticised the Emperor, the government, or the war effort. There was a systematic and comprehensive censorship of the press, literature, and academic work.

B. Total War Mobilisation

The demands of total war transformed the social structure of Japan profoundly. The National General Mobilisation Law of 1938 gave the state authority not only over industrial production but over the organisation of daily life. Military drills were conducted at schools. Neighbourhood associations (tonarigumi) were repurposed and adapted as instruments used for surveillance by the state and for the distribution of resources. Civil organisations, cultural institutions, and religious bodies were brought under government direction or dissolved.

From an early age, children were taught military values, including honour, sacrifice, discipline, and absolute loyalty to the Emperor, and these were further reinforced through every channel of public communication.

Conscription pulled men from virtually every family in Japan, and by 1945, as the prospect of an invasion of Japan from the Allied Powers loomed, the government started preparing elderly men and teenage boys for national defence under the Volunteer Fighting Corps system. Citizens were told through propaganda that death in the service of the Emperor was the highest possible honour. This message found its most extreme expression in the kamikaze programme and called for civilian mass suicide in the event of invasion.

C. Class Divisions: Rural and Urban Japan

Japanese society in this period saw a significant divide between its rural and urban populations, each of which experienced the war and its hardships in distinct ways.

Rural communities were more traditional in their character and were more closely governed by agricultural patterns and local hierarchies. They were also less directly exposed to the industrial modernity of the cities. Farmers had some structural advantages during periods of food scarcity, as the proximity and immediate access to agricultural production offered a degree of buffer against the worst shortages.

However, the state extracted large amounts from the countryside through compulsory crop requisitioning schemes that fixed prices below market rates and obligated farmers to surrender set quantities of rice and other staples regardless of their own needs. The conscription of young men also created severe agricultural labour shortages, reducing farm output at precisely the moment demand was highest due to fewer people available to work on the fields. Rural communities were, therefore, expected to feed the nation and were stripped of the human capital needed for increasing the farm output.

Urban populations were more closely integrated into the war economy through their roles in industrial production, and they, therefore, suffered accordingly. Major cities were densely populated, strategically important, and deeply vulnerable and prone to aerial attack. The firebombing campaigns of 1945 caused catastrophic civilian casualties and physical destruction on a scale that transformed the urban landscape.

When naval blockades and the bombing of transport networks from the Allied Powers severed food supply lines to the cities, urban populations faced acute shortages with few of the agricultural resources available to rural communities. As conditions deteriorated in 1945, large numbers of urban residents moved to rural areas in search of food and safety, which in turn placed an additional strain on rural communities already struggling to meet state quotas.



D. Gender and the War

Japanese society was strongly patriarchal in structure. Women were legally subordinate to the male heads of their households, whether fathers or husbands. They were excluded from political participation, rights to property, and formal decision-making at every level of public life.

The family law system reinforced this subordination explicitly. The roles prescribed to women were those of wife, mother, and domestic caretaker. The interest of the state in women was largely defined in terms of their reproductive role and contribution to the nation, reproducing and raising children who would serve the Emperor.

The mass mobilisation of men into the armed forces created significant shortages of labour that the state was compelled to address through the expanded deployment of women in the workforce. Women entered munitions factories, textile plants, and agricultural operations in large numbers. They often worked for long hours under difficult conditions. Women's patriotic associations organised by the state, most notably the Greater Japan Women's Association (Dai Nippon Fujinkai), coordinated civilian contributions to the war effort, including sewing uniforms, managing rationing, and supporting recruitment drives.

Critically, however, these contributions were not seen as evidence of women's capability or a basis for expanded rights, but they were seen as extensions of their traditional domestic and nurturing roles. Women were contributing to the nation in the same spirit with which they managed the household. Their wartime labour did not translate into political recognition, legal reform, or any meaningful shift in the formal status of women before the war's end.

The war also produced darker dimensions of gender exploitation that bear relevance to any comprehensive examination of Japanese conduct during this period. The "comfort women," a system of military in which women were subjected to sexual slavery in service of the Imperial Japanese Army, arranged women predominantly from Japan's colonies and occupied territories, including Korea,

China, and the Philippines, and represented one of the most serious charges of organised atrocity levelled against Japan's wartime leadership.

War Progression and Global Developments

Causes and Origins

World War II was rooted in the profound turmoil of the 1919-1939 interwar period. The Treaty of Versailles (1919), which formally concluded World War I, placed sole responsibility for the conflict upon Germany. It also imposed a series of punishments such as heavy territorial losses, severe military restrictions, and substantial reparation payments. Germans regarded the treaty as humiliating, and many, including radical figures such as Adolf Hitler, felt that the defeat was attributed to the 'stabbing-in-the-back' by communists and Jews rather than to military failure.

The resulting economic crises, the hyperinflation of 1923, and the devastation of the 1929 Great Depression fatally undermined the Weimar Republic. Mass unemployment and social instability led to extremist politics that made radical and unrealistic promises, including vows to overturn the Versailles settlement. All these promises seemed dangerously attractive to a desperate electorate.

The League of Nations, founded in 1920 with the aim of enforcing collective security, proved highly ineffective. Japan's seizure of Manchuria in northeast China in 1931 and Italy's invasion of Ethiopia in 1935-36 went virtually unchecked. As Great Britain and France were still recovering from the economic depression and the effects of the First World War, they adopted a policy of non-intervention, allowing the aggressive dictators to grow unchallenged.

By the late 1930s, Europe stood divided again between the fascist powers, Germany and Italy on one side, and the Western democracies and the USSR on the other. In Asia, Japanese militarism was fuelled

by the deep resentment over Western racial discrimination and colonialism. Japan, which had occupied Manchuria, had been pushing further into China..

Ideological conflicts intensified over the next decade. The Spanish Civil War (1936-39) became the major face-off between fascism and communism as Hitler and Mussolini dispatched troops, aircraft, and material to Franco's Nationalist forces, while the USSR backed the Republican government. This conflict served as a practice drill for the upcoming war, including the blitzkrieg coordination and the aerial bombardment of civilian targets.

In Africa, Italy used chemical weapons and mass executions in Ethiopia. It demonstrated how totalitarian regimes would completely disregard the established norms of warfare. In the Pacific, Japanese forces inflicted large-scale atrocities, including the Nanjing Massacre of 1937-38, in which an estimated 300,000 civilians and prisoners of war were killed.

By 1939, the world was effectively divided into two hostile blocs. Hitler had consolidated power in Germany by eliminating political opposition and systematically rearming the military. Not only that, it had declared his intention to overturn Versailles. Hitler also started annexing adjacent territories, such as the incorporation of Austria through Anschluss in 1938, and the occupation of the Sudetenland following the Munich Agreement. This was a part of his policy to expand eastward to secure Lebensraum, or 'living space,' for the German people.

Italy, under Mussolini, invaded Albania in 1939. Japan, although constrained by growing American economic sanctions, sought new territorial conquests with the aim of securing raw materials. Germany's increasingly aggressive foreign policy was a part of the series of diplomatic arrangements: the Berlin-Rome Axis of 1936, the Tripartite Pact with Italy and Japan in 1940, and the Nazi-Soviet Non-Aggression Pact of August 1939. This agreement secretly partitioned Eastern Europe between Hitler and Stalin, making way for the invasion of Poland.

Historians continue to debate the 'inevitability' of World War II. While most agree that the seeds of conflict were sown by the terms of Versailles and the catastrophic Great Depression, the choices made by individual leaders and governments were clearly the decisive factor.

Outbreak of the War (1939-1940)

On 1 September 1939, Germany launched an assault on Poland by deploying a new strategy, Blitzkrieg, or 'lightning war'. This strategy integrated tanks, air power, and infantry to overwhelm defences with speed and shock. As the German army rapidly overwhelmed western Poland, the USSR simultaneously invaded from the east based on the secret terms of the Non-Aggression Pact.

Great Britain and France had a mutual defence agreement to protect Poland. On 3 September 1939, bound by an agreement with Poland, they declared war on Germany, marking the formal beginning of the Second World War. Poland fell by early October and was divided between its two occupiers.

During the opening months of the conflict, known as the 'Phoney War' (1939-40), Britain and France did not undertake any significant offensive action against Germany. Meanwhile, Nazi Germany consolidated its hold over occupied Poland and prepared new campaigns. In April 1940, Hitler invaded Norway and Denmark, securing strategic naval bases and ensuring continued access to Swedish iron ore.

On 10 May 1940, Germany launched a massive offensive in the West, evading the heavily fortified Maginot Line and moving into Belgium and northern France. Within ten days, Germans had reached the English Channel, cutting off Allied forces in the north.

The evacuation of British and Allied troops from Dunkirk was an impressive effort, even though they were under constant attack. Paris fell in mid-June, and the French government signed a treaty on 22 June 1940. The northern two-thirds of France fell under German administration, known as the Vichy regime.

Hoping to capitalise on French weakness and acquire colonial gains, Italy entered the war on Germany's side in June 1940, but it was unable to match the pace or effectiveness of German military

operations. Britain now stood alone against the Axis Powers in Europe. In the summer and autumn of 1940, the German Luftwaffe launched the Battle of Britain. This was a strategic bombing campaign that targeted RAF Fighter Command's airfields and British cities.

Thankfully for the British, their radar networks and the resilience of the Royal Air Force proved decisive. The Luftwaffe failed to establish air superiority, and Hitler's planned invasion of Britain, known as Operation Sealion, was postponed indefinitely. The threat of invasion forced Britain onto an immediate total war footing. Britain had increased its war production of tanks, ships, and aircraft, and the civilian population was reorganised around rationing and defence.

The Axis Powers continued to expand. Italian forces invaded Egypt in September 1940, though the campaign was quickly obstructed. To support the Italian troops in North Africa, Hitler had sent General Erwin Rommel along with German tank forces. By 1941-42, Rommel had advanced far into Egypt, but his troops were finally stopped at the Battle of El Alamein in late 1942.

In the Balkans, Germany intervened when Yugoslavia and Greece resisted Axis demands. Both countries were conquered by mid-1941. In Asia, Japan had taken control of French Indochina in 1940 and continued its campaigns in China.. The United States responded to Japanese expansion with increasing economic sanctions, putting an embargo on oil exports, which was a direct existential threat to Japan's war machine. Japanese leaders responded with strikes to neutralise Western naval power and seize the resources they required.

Global War and Turning Points (1941-1943)

On 22 June 1941, Hitler abruptly violated the Nazi-Soviet Pact and launched Operation Barbarossa by invading the Soviet Union. Nearly three million Axis troops, the largest invasion force ever assembled, supported by approximately 3,000 tanks and 2,500 aircraft, moved towards Leningrad, Moscow, and Ukraine.



The initial assault shattered large sections of the Red Army through surprise and overwhelming force. By autumn 1941, Kyiv had fallen, and German forces were threatening Moscow itself. However, winter conditions and fierce resistance from the Soviet Union gradually blunted their advance. German military intelligence had clearly underestimated Soviet reserves. Stalin mobilised over 200 fresh divisions by mid-1941, and overestimated the likelihood of Soviet political collapse.

By late 1941, the Wehrmacht was exhausted, and Moscow never fell. Operation Barbarossa marked a decisive turning point. The failure of the blitzkrieg against the Soviet Union meant Germany had now committed to a two-front war that it could not sustain.

On 7 December 1941, Japan launched a surprise air attack on the United States Pacific Fleet at Pearl Harbour, Hawaii. Japanese aircraft damaged and sank eight battleships, destroyed 188 aircraft, and killed 2,403 Americans. Japanese strikes simultaneously targeted British bases in Singapore and Hong Kong. The conquest of Southeast Asia, Malaya, and the Philippines commenced immediately. The attack caused the United States to declare war on Japan on 8 December 1941. Germany and Italy declared war on the United States four days later. America's entry into the conflict brought an industrial capacity that would prove decisive in the long run.

In Europe, German forces besieged Leningrad and advanced towards Stalingrad on the Volga. In the Pacific, Japan had occupied the Philippines, the Dutch East Indies, Burma, and briefly even the Aleutian Islands. Yet the resistance from the Allied Powers was stiffened at critical points. The British victory at the Second Battle of El Alamein halted and reversed Rommel's advance in North Africa.

In the Battle of Midway (3-6 June 1942) in the Pacific, a smaller American carrier force under Admirals Nimitz and Spruance ambushed the Japanese fleet, sinking four of its six fleet carriers and destroying the core of Japan's naval striking power. The Battle of Midway permanently ended Japan's capacity to wage an offensive war.

On the Eastern Front, the winter of 1942-43 proved catastrophic for Germany. At Stalingrad (August 1942-February 1943), Hitler's Sixth Army became encircled after the Red Army launched a devastating

counter-offensive. More than a million Soviet soldiers and tens of thousands of civilians perished in the fighting; approximately 300,000 German and Axis troops were lost, including the surrender of an entire field army. Stalin's victory at Stalingrad was the beginning of the end for the Third Reich. From that point forward, the Wehrmacht kept retreating on the Eastern Front.

Allied Offensive and Axis Defeat (1943-1945)

From mid-1943, the Allies were back in power. On all fronts, Axis forces began to crumble. Allied landings in Sicily in July 1943, followed by an invasion of the Italian mainland, led to the collapse of Mussolini's government and Italy's surrender in September 1943. German forces continued to resist in Italy, but the campaign there diverted significant Axis strength from other places.

On the Eastern Front, the Battle of Kursk was fought. It was the largest tank engagement in history, in which the Red Army decisively repelled a major German offensive and then launched its own counterattacks. By winter 1943, Soviet forces had recaptured Ukraine and were driving into Eastern Europe.

On 6 June 1944, D-Day, the Western Allies launched Operation Overlord. It was a massive amphibious assault on the coast of Normandy, France. Under the command of General D. Eisenhower, approximately 160,000 Allied troops stormed five beaches. They succeeded in establishing a crucial foothold in occupied France and opening the long-anticipated Western Front. Paris was liberated by late August 1944. In December 1944, Germany launched a final desperate counter-offensive in the Ardennes, which was repelled after fierce fighting.

By spring 1945, the Axis was collapsing on all fronts. Soviet armies closed in on Berlin from the east, while American, British, Canadian, and other Allied forces advanced from the west. Adolf Hitler, refusing to flee the encircled capital, committed suicide on 30 April 1945. Germany surrendered unconditionally on 8 May 1945, bringing the war in Europe to a close.

In the Pacific, Allied island-hopping campaigns bypassed Japanese control, capturing strategically important positions, Guadalcanal in 1943, Tarawa in 1943, Saipan in 1944, and the Philippines in 1944-45. The battles of Iwo Jima (February-March 1945) and Okinawa (April-June 1945) led to enormous casualties on both sides. Japanese cities were subjected to devastating air raids, including a firebombing raid on Tokyo that killed over 100,000 people in a single night.

Finally, the United States dropped atomic bombs on Hiroshima on 6 August 1945, killing an estimated 70,000-80,000 people immediately, and on Nagasaki on 9 August. Japan surrendered on 15 August 1945, bringing the Second World War to its conclusion.

The Home Fronts, Economic and Civilian Impact

World War II was a global war that mobilised societies, not just armies. Allied economies vastly outproduced the Axis by the middle of the war, supplying weapons, vehicles, and supplies on an unprecedented scale. Axis economies, smaller and less diversified, increasingly depended on the plunder of occupied territories. Nazi Germany looted the economic resources of occupied Europe, while Japan exploited the raw materials of conquered Asia.

Women entered the industrial workforce in extraordinary numbers on all sides. Civilian life was greatly disrupted everywhere. Rationing, propaganda, and war production campaigns dominated daily existence. Civilians in combat zones faced direct attack as German and Japanese forces bombed population centres with the clear aim of breaking civilian morale. The Siege of Leningrad killed over one million residents, the majority from starvation and exposure rather than direct military action.

In Europe, Stalin's regime also terrorised occupied populations, deporting and executing Poles, Ukrainians, and others. Hitler's regime implemented the Holocaust, the systematic murder of six million Jews and millions of others, including Roma, the disabled, and political prisoners.

By the war's end, human losses were staggering and could not be easily comprehended. Estimates of total deaths range from 35 to 60 million. The Soviet Union and China suffered the most, with tens of millions of dead in each case. Poland lost approximately 20 per cent of its pre-war population, around 5.8 million people. Germany lost approximately 4.2 million military personnel, and Japan lost close to two million. The scale of civilian suffering, through bombing, famine, displacement, and disease, was without precedent in recorded history.

The war also led to the acceleration of technological development. Jet aircraft, operational radar, early computing machines, ballistic rocketry, especially the V-2, and nuclear weapons all either emerged or improved during the conflict. These developments, together with the vast mobilisation of tens of millions of soldiers worldwide, are why historians consistently characterise World War II as the largest and most destructive war in human history.

Ideological and Diplomatic Dimensions

World War II was in many respects an ideological struggle as much as a military one. The racial ideology of Nazi Germany drove a war of extermination against Jews, Slavs, Roma, and other groups deemed undesirable or subhuman. Japan's nationalist imperial doctrine led to brutal conquest and the subjugation of Asian peoples. The Soviet Union under Stalin also operated campaigns of terror in occupied zones by imposing communist rule through mass deportations and executions.

The Allied powers, on the contrary, publicly framed their cause as a defence of democracy and self-determination, principles enshrined in the Atlantic Charter of 1941 and later mentioned in the United Nations Charter of 1945. In practice, the wartime alliance involved a great ideological compromise, especially in the partnership between the Western democracies and Stalin's USSR.

Wartime diplomacy wanted to define not only how the war would be fought but what the postwar world would look like. The major Allied leaders met at a series of important conferences, Tehran in 1943, Yalta in February 1945, and Potsdam in July 1945, to negotiate the terms of Germany's defeat, the postwar division of Europe, and the architecture of new international institutions.

At Yalta, Roosevelt, Churchill, and Stalin reached an agreement on the division of Europe into spheres of influence and on the founding of the United Nations. The Atlantic Charter had already established some foundational principles, such as no territorial acquisition by force, the right of peoples to self-determination, and a commitment to international cooperation. These wartime diplomatic arrangements led to both the Cold War and the era of decolonisation that followed.

Expansion and Escalation

Europe constituted the central and most politically important arena of the Second World War, spanning a vast geographic expanse from the Atlantic coastline to the western borders of the Soviet Union. It was within this region that the conflict both originated and ultimately concluded, shaped by ideological differences, rapid military innovation, and the strategic ambitions of the great powers. The war in Europe was not merely a succession of battles. It was a sustained struggle that fundamentally redefined the political geography of the continent.

The European theatre opened with the German invasion of Poland in September 1939. It was a calculated act of aggression that demonstrated the effectiveness of Blitzkrieg on a continental scale. This strategy of rapid, coordinated assault using armoured formations and close air support allowed Germany to achieve quick, decisive victories across much of Europe.

Within months, Denmark, Norway, Belgium, the Netherlands, and France had fallen. The fall of France in June 1940 was particularly shocking, leaving the United Kingdom as the sole major power resisting German expansion in the West. This circumstance necessitated the gradual consolidation of what would become the Allied Powers.

The Battle of Britain, which followed in the summer and autumn of 1940, represented the first significant check to German expansion. Germany wanted to establish air superiority as a precondition for a cross-Channel invasion, but it was thwarted by the Royal Air Force, demonstrating for the first time that the Axis advance was clearly stoppable. Despite this setback, most of continental Europe remained under Axis occupation, creating conditions of prolonged repression which gave rise to organised resistance movements across occupied territories.

The defining shift in the European Theatre came with Operation Barbarossa in June 1941, which opened the Eastern Front, the largest and most brutal single theatre of the entire war. Initial German advances were rapid and devastating, but the vastness of Soviet territory, the harshness of the Russian winter, and the extraordinary resilience of Soviet resistance gradually eroded German momentum. The Battle of Stalingrad (1942-43) marked the decisive turning point, initiating a sustained Soviet counter-offensive that would ultimately carry the Red Army to Berlin.

Simultaneously, the Western Allies prepared to re-enter continental Europe. The Normandy landings of June 1944, Operation Overlord, established a crucial foothold in occupied France and set in motion the liberation of Western Europe. As Allied forces advanced from the west and Soviet forces drove from the east, Germany found itself caught in an inexorable vice, unable to sustain its war effort on two fronts simultaneously.

The European Theatre concluded with the fall of Berlin in May 1945 and Germany's unconditional surrender. The division of Europe between the Western powers and the Soviet Union laid the foundations for the Cold War that would define the future of international relations. For delegates, a thorough understanding of the European Theatre is essential as it encapsulates the strategic, political, ideological, and human dimensions of the Second World War in their fullest, consequential form.





World War II Timeline

18 Sep 1931	Japan invades Manchuria, establishing the puppet state of Manchukuo in 1932.
2 Oct 1935	Fascist Italy invades and subsequently annexes Ethiopia (completed May 1936).
25 Oct 1936	Nazi Germany and Italy announce the Rome-Berlin Axis following a treaty of cooperation.
25 Nov 1936	Germany and Japan sign the Anti-Comintern Pact, directed against the Soviet Union and international communism.
7 Jul 1937	Japan launches a full-scale invasion of mainland China following the Marco Polo Bridge Incident.
26 Nov 1937	Italy joins the Anti-Comintern Pact, consolidating the future Axis coalition.
11 to 13 Mar 1938	Germany annexes Austria in the Anschluss, uniting the two German-speaking nations under Hitler.
29 Sep 1938	Germany, Italy, Britain, and France sign the Munich Agreement, forcing Czechoslovakia to cede the Sudetenland to Germany.
14 to 15 Mar 1939	Under German pressure, Slovakia declares independence. Germany occupies the remaining Czech lands, forming the Protectorate of Bohemia and Moravia.
31 Mar 1939	France and Great Britain formally guarantee the territorial integrity of Poland.
7 to 15 Apr 1939	Fascist Italy invades and annexes Albania.
23 Aug 1939	The Molotov-Ribbentrop Pact: Nazi Germany and the Soviet Union sign a non-aggression agreement with a secret protocol dividing Eastern Europe into spheres of influence.
1 Sep 1939	Germany invades Poland, initiating World War II in Europe.
3 Sep 1939	Honouring their guarantee, Great Britain and France declare war on Germany.
17 Sep 1939	The Soviet Union invades Poland from the east. The Polish government flees into exile, eventually relocating to London.
28 to 29 Sep 1939	Warsaw falls. Germany and the Soviet Union divide Poland between them.
30 Nov 1939	The Soviet Union invades Finland, beginning the Winter War. An armistice is concluded on 12 March 1940; Finland cedes territory including the northern shores of Lake Ladoga and a coastal strip on the Arctic Sea.
9 Apr 1940	Germany invades Denmark and Norway. Denmark capitulates immediately; Norway holds out until 9 June 1940.
10 May 1940	Germany attacks France and the neutral Low Countries. Luxembourg falls on 10 May; the Netherlands surrenders on 14 May; Belgium surrenders on 28 May. France signs an armistice on 22 June 1940, with Germany occupying the north and a collaborationist regime established at Vichy in the south.
10 Jun 1940	Italy enters the war on the Axis side. Italian forces invade southern France on 21 June.



10 Jul 1940	The Battle of Britain begins. The Luftwaffe's attempt to achieve air superiority over the RAF ends in German defeat by 31 October 1940.
27 Sep 1940	Germany, Italy, and Japan sign the Tripartite Pact, formalising the Axis alliance.
28 Oct 1940	Italy invades Greece from Albania. Greek forces repel the invasion and counterattack into Albania.
22 Jun 1941	Operation Barbarossa: Germany and its Axis partners (excluding Bulgaria) launch a massive invasion of the Soviet Union. By September, Leningrad is besieged and Kiev captured; German forces reach the outskirts of Moscow by October.
6 Dec 1941	Soviet counteroffensive drives German forces back from the outskirts of Moscow.
7 Dec 1941	Japan launches a surprise aerial attack on the United States Naval Base at Pearl Harbor, Hawaii, bringing the US into the war.
8 Dec 1941	The United States and Britain declare war on Japan. Japanese forces land in the Philippines, French Indochina, and British Malaya. Singapore falls in February 1942; the Philippines by April 1942; Burma by May 1942.
11 Dec 1941	Nazi Germany and Italy declare war on the United States.
Jun 1942	Battle of Midway: the US Navy halts the Japanese advance in the central Pacific, sinking four Japanese fleet carriers - a decisive strategic turning point.
28 Jun 1942	Germany launches a summer offensive in the Soviet Union, driving toward Stalingrad and the Caucasus oilfields.
7 Aug 1942	Allied forces land on Guadalcanal in the Solomon Islands, beginning the first major Allied offensive against Japan in the Pacific.
23 Oct 1942	British forces defeat the Axis at the Second Battle of El Alamein, Egypt, forcing a chaotic Axis retreat across Libya.
8 Nov 1942	Operation Torch: US and British forces land in French North Africa (Algeria and Morocco).
19 Nov 1942	Soviet forces launch Operation Uranus, encircling the German Sixth Army at Stalingrad. The Sixth Army surrenders on 2 February 1943 - a catastrophic defeat for Germany.
13 May 1943	All remaining Axis forces in Tunisia surrender to the Allies, ending the North African Campaign.
5 Jul 1943	Germany launches the Battle of Kursk, the largest tank battle in history. The Soviet counter-offensive following this battle marks the permanent shift of strategic initiative to the Allies in the east.
10 Jul 1943	Allied forces land in Sicily; the island is secured by mid-August. Mussolini is deposed on 25 July 1943.
8 Sep 1943	Italy surrenders unconditionally. Germany immediately occupies Rome and northern Italy, installing Mussolini (rescued by German commandos) as head of a puppet state.
6 Jun 1944	D-Day: British, American, and Canadian forces land on the Normandy beaches of France, opening the long-awaited 'Second Front'.

22 Jun 1944	Soviet Operation Bagration destroys German Army Group Centre, the largest single defeat in German military history.
25 Aug 1944	Paris is liberated. By September, Allied forces reach the German border.
16 Dec 1944	Germany launches the Ardennes Offensive (the 'Battle of the Bulge'), its last major offensive in the west. German forces are repelled by early January 1945.
7 Mar 1945	US forces cross the Rhine at Remagen - the first crossing of the Rhine by a hostile army since Napoleon.
16 Apr 1945	Soviet forces launch the final assault on Berlin.
30 Apr 1945	Hitler commits suicide in his Berlin bunker as Soviet forces close in.
7 to 8 May 1945	Germany signs unconditional surrender documents at Reims (7 May) and Berlin (8 May). Victory in Europe (V-E Day) is declared on 8 May 1945.
6 Aug 1945	The United States drops an atomic bomb ('Little Boy') on Hiroshima. Approximately 70,000 to 80,000 people are killed instantly.
8 Aug 1945	The Soviet Union declares war on Japan and invades Japanese-occupied Manchuria.
9 Aug 1945	A second atomic bomb ('Fat Man') is dropped on Nagasaki, killing approximately 40,000 people instantly.
14 Aug 1945	Emperor Hirohito announces Japan's acceptance of the Potsdam Declaration and unconditional surrender via a recorded radio broadcast - the first time most Japanese citizens had ever heard his voice.
2 Sep 1945	Japan formally signs the instrument of surrender aboard USS Missouri in Tokyo Bay, ending World War II.



Major Belligerents

The following table summarises the principal combatant nations, their wartime leadership, peak military strength, approximate total casualties, and principal war aims.

Note: Casualty figures remain subjects of ongoing historical debate and should be treated as estimates.

Nation	Leader(s)	Peak Strength	Total Casualties	War Aims
Germany	Adolf Hitler	13 to 18 million	6.9 to 7.4 million	Lebensraum, racial supremacy (Nazism), overturn Treaty of Versailles
Soviet Union	Joseph Stalin	34 million	24 to 27 million	Defend USSR, spread communism, secure Eastern European buffer zone
United States	F.D. Roosevelt, H.S. Truman	16 million	418,000	Defeat Axis, protect democracy, maintain global stability
United Kingdom	Winston Churchill	5 to 6 million	450,000	Defeat Axis, preserve empire, maintain European balance of power
Japan	Emperor Hirohito, Gen. Hideki Tojo	6 to 7 million	2.5 to 3.1 million	Imperial expansion, Greater East Asia Co-Prosperity Sphere
Italy	Benito Mussolini	3.5 to 4.5 million	450,000	Mediterranean empire, fascist dominance in the Mediterranean
China	Chiang Kai-shek	14 million	15 to 20 million	Resist Japanese invasion, maintain sovereignty
France	Charles de Gaulle (Free France)	5 million (pre-1940)	600,000	Resist German occupation, restore the Republic

Note on Italy: Peak military mobilisation figures for Italy are generally revised downward to approximately 3.5 to 4.5 million when accounting for the significant collapse of Italian forces following the 1943 armistice. The figure of 4.5 million reflects early-war peak strength.



Command Structure of Japan

A proper understanding and knowledge of the structure of authority in Japan during the Second World War is necessary for a proper evaluation of all charges before the committee. The issue of responsibility cannot be considered without a proper evaluation of the structure of authority.

The system of governance in Japan is a complex mixture of constitutional authority and institutional practice. It is a complex structure where authority and responsibility were not always clearly defined. It is important that the delegates understand this and make a proper distinction between authority, practical influence, and actual control.

1. The Emperor

At the apex of this structure is the Emperor, and his role is defined in the Meiji Constitution. This structure defined the role of the Emperor as:

- The Emperor is the sovereign head of the state, and in his person all the rights of governance are combined.
- He has supreme command of the Army and the Navy, and this authority includes:
 - Military organisation
 - Declaration of war and peace
 - Strategic direction

In other words, all actions of the state are carried out in the Emperor's name and with authority granted by him.



The manner in which authority is exercised is subject to interpretation. In other words, although the Emperor holds supreme authority under the constitution, it can be argued that matters were put before him through due process, giving rise to:

Whether he is an active participant in matters of state, or whether he functions in an environment in which advice and consensus are determinative. This is precisely what is at issue in the committee's inquiry.

2. Imperial Conferences and Supreme War Council

Below the Emperor are key bodies through which key decisions in matters of state take place.

a. Imperial Conferences

Imperial Conferences refer to formal gatherings of key persons in the presence of the Emperor, in which key decisions, especially in matters of war and foreign affairs, are discussed. The key persons in attendance are:

- Senior military officers,
- Cabinet ministers,
- Key state functionaries

The Imperial Conferences are the main platform through which key matters of state are put before the Emperor for approval.

b. Supreme War Council (and similar bodies)

This body acts as a central coordinating authority for war-related policies and comprises:

- Military leaders

- Political leadership
- Strategic planners

This body greatly contributes to:

- Coordination of military and political strategies
- Assessment of ongoing military operations
- Provision of advice on key decisions during wartime

Although these bodies do not override the authority of the Emperor, they greatly contribute to the formulation of policies prior to presentation to him.

3. Military High Command

The military high command in Japan is responsible for the operational management of the country's armed forces. This is done by two key bodies:

a. Army General Staff

This body is :

- Responsible for planning and commanding land-based military operations, such as:
- Exercise a considerable amount of autonomy in operational issues
- Plays a key role in various military campaigns in China and other areas

b. Naval General Staff

- Oversees naval strategies and operations
- Directs maritime and Pacific operations

These institutions are charged with:

- Strategic planning
- Executing strategies
- Issuing orders to field commanders

Of particular significance, however, is the fact that the military command structure has a certain level of autonomy, especially in operational roles. This gives rise to differing perspectives on:

- The level of civilian control
- The level of direct control from above

4. Government Leadership

Concomitant to the military structure is the civilian government, led by the Prime Minister and advised by the Cabinet.

a. Prime Minister:

- Serves as the head of the civilian government
- Is charged with coordinating state affairs
- Serves as a link between the Emperor, the military, and the civilian government

b. Cabinet Ministers

- Includes the Ministers of War, Navy, Foreign Affairs, and others
- Serves in various roles, especially in formulating and implementing state affairs

5. Interaction Between Structures

The Japanese structure of this period is not strictly hierarchical in the sense of a strict line of command. Rather, it is characterised by interaction between several centres of authority, including:

- The Emperor (constitutional authority)
- Military leadership (operational control)
- Government leadership (administrative coordination)

Decisions are taken through:

- Consultation
- Deliberation in council
- Presentation to the Emperor for approval

This is a structure in which formal authority and effective control are closely intertwined, though not necessarily the same.

Key Issue for Delegates

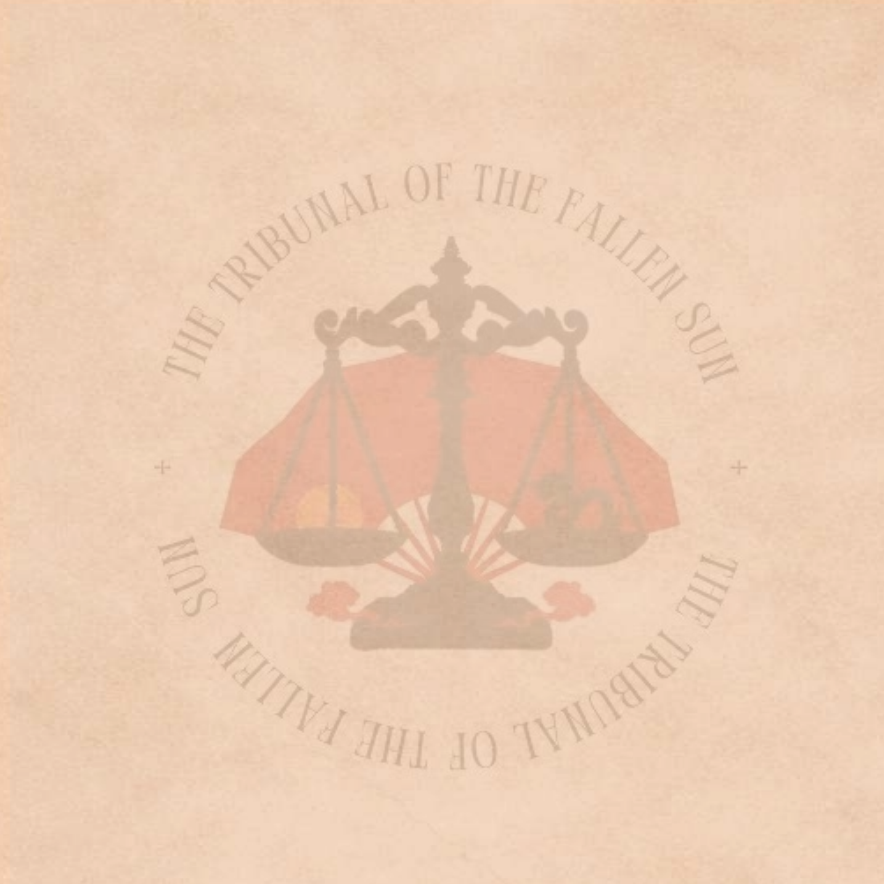
Having identified the positions of authority, the key issue that the delegates must consider in assessing responsibility is to address some of the deeper issues about the exercise of power in such a structure. The key issues are:

- **How Authority Was Exercised:** Was the authority actively used to direct and influence decisions, or was it essentially a formality for approving decisions taken elsewhere?
- **Centralisation/Distribution of Decision-Making:** Were decisions taken centrally, or were they influenced by multiple institutions with varying degrees of autonomy
- **Attribution of Knowledge and Control:** Whether or not it is possible to demonstrate that individuals at the highest levels, particularly the Emperor, possessed knowledge of events and control/influence over them.

This format represents a system in which legal authority, institutional practice, and political reality are complexly interwoven. Care must be taken by the delegates in assessing not only whether there

was authority, but also how that authority functioned in practice, and whether that is adequate to establish responsibility in relation to the charges being assessed.

The establishment of responsibility will be determined not simply in relation to formal position, but in relation to the interrelationship of authority, knowledge, and control in this system.



Potential Areas Of Legal

Responsibility

Any proceeding of this nature demands precision in its framing. It is not sufficient to assert in general terms that the Emperor bears responsibility for the conduct of Japan's war. A credible trial requires that specific charges be identified, defined, and grounded in the legal framework established by international law and the constitutional structure of the Japanese state. The charges set out below represent the principal categories under which a prosecution of Emperor Hirohito could reasonably be constructed. Each charge carries its own evidentiary requirements and legal logic, and delegates are expected to engage with them not merely as abstract propositions but as live legal questions to be argued, contested, and adjudicated within committee. The following charges represent different legal frameworks through which responsibility may be assessed.

Charge I: Crimes Against Peace (Class A): The Waging of Wars of Aggression

Charge I concerns one of the most difficult and controversial legal questions to emerge from the aftermath of the Second World War: whether the planning, preparation, initiation, or waging of aggressive war may give rise to individual criminal responsibility.

Traditionally, war had often been treated in international law as an act of state rather than as a personal crime committed by individual leaders. During the inter-war period, however, important legal developments began to challenge that understanding. The Kellogg-Briand Pact of 1928 formally condemned recourse to war as an instrument of national policy and required disputes to be settled by pacific means. Yet the Pact did not expressly provide criminal penalties for individuals who violated it.

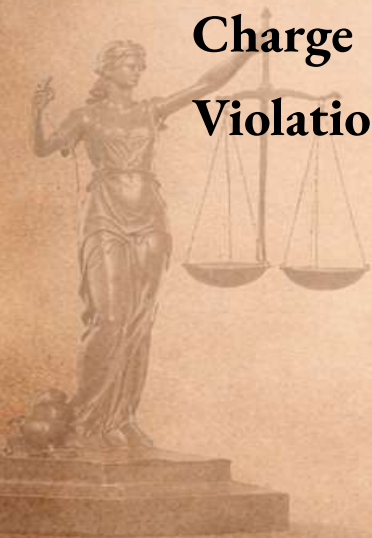
For that reason, any argument that aggressive war constituted a punishable crime at the individual level remained highly contested in 1945 and 1946. One position is that the renunciation of aggressive war in treaty law made it sufficiently unlawful that senior leaders who planned or initiated such wars could properly be held personally responsible. The opposing position is that, because no clear pre-war rule expressly imposed individual criminal liability for aggression, prosecution on that basis raises serious concerns regarding retroactivity, legal certainty, and ex post facto punishment.

The question of crimes against peace is therefore often treated as a “leadership crime,” focusing mainly on those persons who had the power to shape, direct, or approve national war policy. Even then, it remains necessary to distinguish between formal authority, actual influence, participation in decision-making, and legal responsibility. Presence in senior office does not by itself establish participation in a criminal plan.

In the context of Japan, this issue is closely associated with the constitutional position of the Emperor and the structure of wartime government. Articles 11, 12, and 13 of the Meiji Constitution gave the Emperor extensive formal authority in military and foreign affairs. However, delegates must still consider whether such formal powers translated into effective control over the initiation and conduct of war, or whether decision-making was mediated by other institutions and actors.

Delegates should therefore treat this charge with particular care. The central question is not simply whether aggressive war was morally condemnable, but whether, in the legal framework available at the time, individual leaders could properly and lawfully be punished for it.

Charge II: Conventional War Crimes (Class B): Violations of the Laws and Customs of War



Charge II concerns conventional war crimes, namely violations of the laws and customs of war. These include, among other things, the mistreatment or killing of prisoners of war, unlawful killing of civilians or hostages, plunder, and destruction not justified by military necessity.

In considering this charge, delegates should distinguish carefully between the different legal sources relied upon. Japan was clearly bound by Hague law, including the Hague Convention IV of 1907. The relevance of the 1929 Geneva Convention Relative to the Treatment of Prisoners of War is more legally complex because Japan signed but did not ratify that Convention before the war. Accordingly, delegates should avoid treating the 1929 Convention as automatically binding treaty law upon Japan in the same way as upon ratifying states.

The committee must also distinguish between the commission of war crimes and the responsibility of senior officials for those crimes. It is one question whether atrocities occurred. It is another whether particular leaders ordered them, knew of them, should have known of them, or failed to prevent or punish them despite possessing the material ability to do so.

Repeated violations across multiple theatres may support an inference that broader failures of discipline, policy, or oversight were present. However, delegates should avoid assuming approval or knowledge merely from repetition alone. Questions of authority, effective control, knowledge, and response remain central.

This charge therefore requires a careful analysis of both conduct and hierarchy. Delegates should assess what rules were clearly applicable, what violations occurred, what information moved upward through the chain of command, and whether particular persons had both the knowledge and the practical ability necessary for responsibility to arise.

Charge III: Crimes Against Humanity (Class C): Systematic Atrocities Against Civilian Populations

Charge III concerns crimes against humanity, including murder, extermination, enslavement, deportation, and other inhumane acts committed against civilian populations, as well as persecution on political or racial grounds.

Delegates should note, however, that in the legal framework of the post-war Far Eastern tribunal, crimes against humanity were not treated as an unlimited or free-standing category in the modern sense. Under the Charter framework associated with the tribunal, such acts were linked to crimes within the Tribunal's jurisdiction. The legal analysis must therefore be conducted with care and not merely through broad moral condemnation.

This charge is especially relevant to patterns of violence against civilian populations in occupied territories, including large-scale killings, forced labour, coercive displacement, persecution, and systems of sexual exploitation. The committee should consider not only whether such acts occurred, but whether they formed part of a widespread or systematic pattern and how far such patterns can be connected to policy, command structures, or failures of intervention.

In considering responsibility, delegates should distinguish between direct perpetrators, local commanders, senior political officials, and the highest levels of state authority. Formal constitutional authority may be relevant, but it is not identical to proof of actual direction or knowledge. The questions of information flow, control, policy, omission, and tolerated practice are all essential to the analysis.

The committee should therefore examine this charge by combining legal precision with factual care. Delegates must avoid assuming that all severe wartime brutality automatically falls into a single legal category without first identifying the relevant legal elements and jurisdictional basis.



Charge IV: Command Responsibility for Biological and Chemical Warfare

Charge IV concerns the development, authorisation, and use of biological and chemical warfare, together with the question of whether such conduct may give rise to responsibility at senior levels of command. Prior to and during the Second World War, chemical and biological methods of warfare were widely condemned and restricted by international practice and treaty law, including the Geneva Protocol.

In this regard, delegates may examine the role of specialised military programmes and units associated with biological or chemical warfare. Evidence has been presented in historical scholarship linking Japanese military structures to the development and use of such methods, including research, experimentation, and operational deployment in China. However, delegates should distinguish carefully between evidence of the existence of such programmes, evidence of approval in principle, evidence of operational use, and evidence that particular senior individuals possessed specific knowledge of unlawful methods or experiments.

The question of high-level responsibility is therefore not resolved simply by showing that a programme existed. Delegates must consider what level of authorisation, awareness, effective control, and failure to intervene can be proved in relation to any accused person. Commendation, institutional support, or bureaucratic continuity may be relevant, but they do not automatically establish complete knowledge of every act carried out within a programme.

This charge should therefore be treated with both seriousness and caution. The issue is not merely whether biological and chemical warfare activities occurred, but whether the available evidence supports legal responsibility on the part of identified senior actors under the legal standards available at the time.

Charge V: Conspiracy to Wage Aggressive War

Charge V concerns conspiracy in relation to aggression, namely whether senior leaders entered into a common plan, agreement, or coordinated course of conduct directed toward aggressive war.

Delegates should approach this charge carefully. Conspiracy does not require proof that every participant personally carried out military operations. However, it does require more than mere status, presence at meetings, or broad association with government. The central issue is whether the evidence supports knowing participation in a plan or common design directed toward unlawful war.

In the context of the post-war Far Eastern tribunal, conspiracy was closely connected to crimes against peace. It should not be treated as an unlimited or free-standing shortcut for liability across all forms of wartime wrongdoing. Accordingly, delegates should distinguish between evidence of policy discussion, evidence of political agreement, evidence of formal approval, and evidence of actual participation in a common plan to wage aggressive war.

The constitutional position of the Emperor and the role of elite institutions may be relevant to this inquiry, but formal authority alone does not settle the matter. Delegates must consider what kind of participation, approval, deliberation, or knowledge would be sufficient to establish conspiracy in a legally persuasive manner.

Charge VI: Failure to Prevent and Punish: The Doctrine of Command Responsibility

Charge VI concerns command responsibility arising from failure to prevent or punish violations of the laws of war. This charge is not based on the direct commission of atrocities, but on the responsibility

of persons in positions of authority who possessed sufficient control over subordinates and failed to take appropriate measures when violations occurred.

For the purposes of this committee, it is important to note that such responsibility does not require proof that the accused personally committed or expressly ordered every criminal act. However, it does require careful consideration of knowledge, effective control, ability to act, and failure to take reasonable preventive or punitive measures.

Repeated or widespread violations may permit delegates to draw inferences regarding the state of discipline, the possibility of higher-level awareness, and the adequacy of command oversight. Nevertheless, delegates should avoid treating repetition alone as creating an automatic presumption of knowledge. The legal question is whether, on the evidence available, a superior knew, had reason to know, or culpably failed to address violations within the sphere of his authority.

In the Japanese context, this issue is closely linked to the structure of wartime command, the flow of reports, and the distinction between formal constitutional authority and practical control. Delegates should therefore examine what information was available, what authority particular individuals possessed, what actions were realistically open to them, and whether any failure to prevent or punish can properly be treated as a separate basis of responsibility.

The six charges outlined above identify the principal legal theories that may be argued within this committee in relation to wartime responsibility. Some of these theories are more firmly grounded in contemporaneous law than others, and some remain deeply contested in both historical and legal scholarship. Delegates are therefore encouraged to assess each charge critically rather than assume that any one of them is automatically established.



Focus Issue: Emperor Hirohito

At the heart of this committee's agenda lies one of the most consequential and contested questions of the post-war period: whether Emperor Hirohito bore criminal responsibility for Japan's conduct during the war, and if so, on what legal basis such responsibility could properly be established.

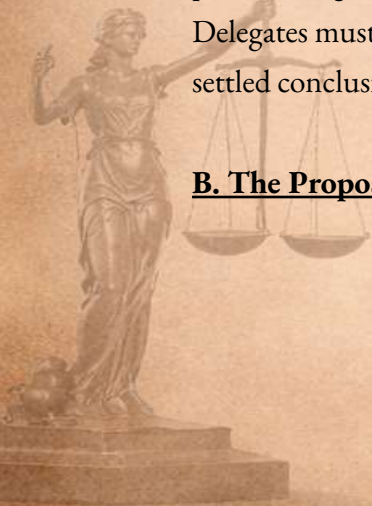
A. Hirohito's Constitutional and Political Role

Under the Meiji Constitution of 1889, the Emperor occupied the formal apex of the Japanese state. He was described as sacred and inviolable, held the rights of sovereignty, possessed supreme command of the Army and Navy, and exercised important powers in matters of war, peace, and treaties. In formal constitutional terms, the Emperor therefore occupied an extraordinary position.

At the same time, the practical operation of the Japanese wartime state was institutionally complex. Decision-making involved the Cabinet, military staffs, senior advisors, and other bodies, and historians continue to debate how far Hirohito personally directed policy as opposed to acting within a structure in which military institutions exercised significant initiative and autonomy. Delegates should therefore distinguish between formal constitutional authority and practical control.

Evidence concerning Hirohito's role remains substantial but contested. It is relevant that he participated in key conferences, received military briefings, and intervened decisively in the final surrender crisis of 1945. These facts may support arguments that his role was not merely ceremonial. At the same time, they do not automatically establish that he personally ordered, approved, or possessed legally sufficient knowledge of every major act for which responsibility may later be alleged. Delegates must therefore assess the evidence with caution and avoid treating contested inferences as settled conclusions.

B. The Proposed Tokyo Tribunal



In the aftermath of Japan's surrender, the Allied Powers moved toward the establishment of a tribunal in the Far East to address wartime responsibility. Such a tribunal was intended to prosecute senior military and political figures, but significant questions arose regarding legal basis, jurisdiction, procedure, fairness, and the extent to which political considerations would shape prosecutorial choices.

One of the central controversies concerns whether Emperor Hirohito should be included among those subjected to prosecution. Some officials may argue that prosecution of the Emperor would better reflect principles of equality before the law and responsibility at the highest level. Others may argue that the Emperor's continued role could be treated as politically necessary for occupation stability, administrative continuity, and public order. These competing views illustrate that the issue is shaped by both legal reasoning and occupation policy.

Delegates should therefore recognise that the question of Hirohito's trialability is not resolved simply by reference to his office. It requires consideration of constitutional authority, actual influence, available evidence, legal standards of responsibility, and the political context in which post-war justice was being constructed.

C. Reassessment of the Current Situation

In light of the surrender, occupation, and emerging tribunal framework, the issue before this committee is not whether history can be morally judged, but whether particular forms of legal responsibility can be fairly and persuasively established. Delegates must weigh formal authority against practical control, political necessity against legal principle, and the available evidence against the standards of law that were understood to exist at the time.



Charter of International Military Responsibility (CIMR)

SECTION I. CONSTITUTION OF TRIBUNAL

ARTICLE 1. Tribunal Established: The Tribunal of the Fallen Sun is hereby established for the just and prompt trial and punishment of the major war criminals in the Far East. The permanent seat of the Tribunal is in Tokyo.

ARTICLE 2. Members: The Tribunal shall be composed of members appointed in accordance with the constituting authority of the Tribunal, with due regard to judicial competence, impartiality, and the representative character of the participating powers.

ARTICLE 3. Secretariat:

a. President: The executive board will thus act as the president of the tribunal and serve as the president of the tribunal, presiding over proceedings.

ARTICLE 4. Convening and Quorum, Voting, and Absence:

a. Convening and Quorum: When as many as 20 members of the Tribunal are present, they may convene the Tribunal in formal session. The presence of a majority of all members shall be necessary to constitute a quorum.



b. Voting: All decisions and judgments of this Tribunal, including convictions and sentences, shall be by a majority vote of those members of the Tribunal present. In case the votes are evenly divided, the vote of the President shall be decisive.

c. Absence: If a member at any time is absent and afterwards is able to be present, he shall take part in all subsequent proceedings; unless he declares in open court that he is disqualified by reason of insufficient familiarity with the proceedings which took place in his absence.

SECTION II. JURISDICTION AND GENERAL PROVISIONS

ARTICLE 5 Jurisdiction Over Persons and Offences: The Tribunal shall have the power to try and punish Far Eastern war criminals who as individuals or as members of organisations, are charged with offences which include Crimes against Peace.

The following acts, or any of them, are crimes coming within the jurisdiction of the Tribunal for which there shall be individual responsibility:

a. Crimes against Peace: Namely, the planning, preparation, initiation or waging of a declared or undeclared war of aggression, or a war in violation of international law, treaties, agreements or assurances, or participation in a common plan or conspiracy for the accomplishment of any of the foregoing;

b. Conventional War Crimes: Namely, violations of the laws or customs of war;

c. Crimes against Humanity: Namely, murder, extermination, enslavement, deportation, and other inhumane acts committed before or during the war, or persecutions on political or racial grounds in execution of or in connection with any crime within the jurisdiction of the Tribunal, whether or not in violation of the domestic law of the country where perpetrated. Leaders, organisers, instigators and accomplices participating in the formulation or execution of a common plan or conspiracy to commit any of the foregoing crimes are responsible for all acts performed by any person in execution of such plan.

ARTICLE 6. Responsibility of Accused: Neither the official position, at any time, of an accused, nor the fact that an accused acted pursuant to order of his government or of a superior shall, of itself, be sufficient to free such accused from responsibility for any crime with which he is charged, but such circumstances may be considered in mitigation of punishment if the Tribunal determines that justice so requires.

ARTICLE 7. Rules of Procedure: The Tribunal may draft and amend rules of procedure consistent with the fundamental provisions of this Charter.

SECTION III. FAIR TRIAL FOR ACCUSED

ARTICLE 8. Procedure for Fair Trial.-In order to insure fair trial for the accused the following procedure shall be followed:

a. Language: The trial and related proceedings shall be conducted in English and in the language of the accused. Translations of documents and other papers shall be provided as needed and requested.

b. Evidence for Defense: An accused shall have the right to conduct his defence in person and through counsel, subject to the authority of the Tribunal to maintain order and ensure the expeditious conduct of proceedings.

c. Production of Evidence for the Defense: An accused may apply in writing to the Tribunal for the production of witnesses or of documents (through communiques). The application shall state where the witness or document is thought to be located. It shall also state the facts proposed to be proved by the witness or the document and the relevancy of such facts to the defense. If the Tribunal grants the application the Tribunal shall be given such aid in obtaining production of the evidence as the circumstances require.

ARTICLE 9. Applications and Motions before Trial:

All motions, applications, or other requests addressed to the Tribunal prior to the commencement of trial shall be raised within the committee and their acceptance is subject to the president of the tribunal.

SECTION IV. POWERS OF TRIBUNAL AND CONDUCT OF TRIAL

ARTICLE 10. Powers:

The Tribunal shall have the power:

- a. To summon witnesses to the trial, to require them to attend and testify, and to question them.
- b. To interrogate each accused and to permit comment on his refusal to answer any question.
- c. To require the production of documents and other evidentiary material.
- d. To require each witness an oath, affirmation, or such declaration as is customary in the country of the witness, and to administer oaths.
- e. To appoint officers for the carrying out of any task designated by the Tribunal, including the power to have evidence taken on commission.

ARTICLE 11. Conduct of Trial:

The Tribunal shall:

- a. Confine the trial strictly to an expeditious hearing of the issues raised by the charges.
- b. Take strict measures to prevent any action which would cause any unreasonable delay and rule out irrelevant issues and statements of any kind whatsoever.

c. Provide for the maintenance of order at the trial and deal summarily with any contumacy, imposing appropriate punishment, including exclusion of any accused or his counsel from some or all further proceedings, but without prejudice to the determination of the charges.

d. Determine the mental and physical capacity of any accused to proceed to trial.

ARTICLE 12. Evidence:

a. Admissibility: The Tribunal shall not be bound by technical rules of evidence, but it shall admit only such evidence as appears relevant and to have probative value. The Tribunal may exclude material whose reliability is seriously in doubt or whose admission would be inconsistent with the interests of justice. Admissions or statements attributed to an accused shall not be treated as automatically admissible solely by reason of attribution.

b. Relevance: The Tribunal may require to be informed of the nature of any evidence before it is offered in order to rule upon the relevance.

c. Specific evidence admissible: In particular, and without limiting in any way the scope of the foregoing general rules, the following evidence may be admitted:

(1) A document, regardless of its security classification and without proof of its issuance or signature, which appears to the Tribunal to have been signed or issued by any officer, department, agency or member of the armed forces of any government.

(2) A report which appears to the Tribunal to have been signed or issued by the International Red Cross or a member thereof, or by a doctor of medicine or any medical service personnel, or by an investigator or intelligence officer, or by any other person who appears to the Tribunal to have personal knowledge of the matters contained in the report.

(3) An affidavit, deposition or other signed statement.

(4) A diary, letter or other document, including sworn or unsworn statements, which appear to the Tribunal to contain information relating to the charge.

(5) A copy of a document or other secondary evidence of its contents, if the original is not immediately available.

d. Judicial Notice: The Tribunal shall neither require proof of facts of common knowledge, nor of the authenticity of official government documents and reports of any nation or of the proceedings, records, and findings of military or other agencies of any of the United Nations.

e. Records, Exhibits, and Documents: The transcript of the proceedings, and exhibits and documents submitted to the Tribunal, will be filed with the General Secretary of the Tribunal and will constitute part of the Record.

ARTICLE 13. Place of Trial:

The first trial will be held at Tokyo, and any subsequent trials will be held at such places as the Tribunal decides.

SECTION V. JUDGMENT AND SENTENCE

ARTICLE 14. Penalty:

The Tribunal shall have the power to impose upon an accused, on conviction, such punishment as is authorised by its constituting instrument and is determined to be just in light of the gravity of the offence and the circumstances of the accused.

The judgment shall be announced in open court and shall state the reasons on which it is based. Any review, confirmation, or execution of sentence shall take place in accordance with the constituting authority and rules governing the Tribunal.

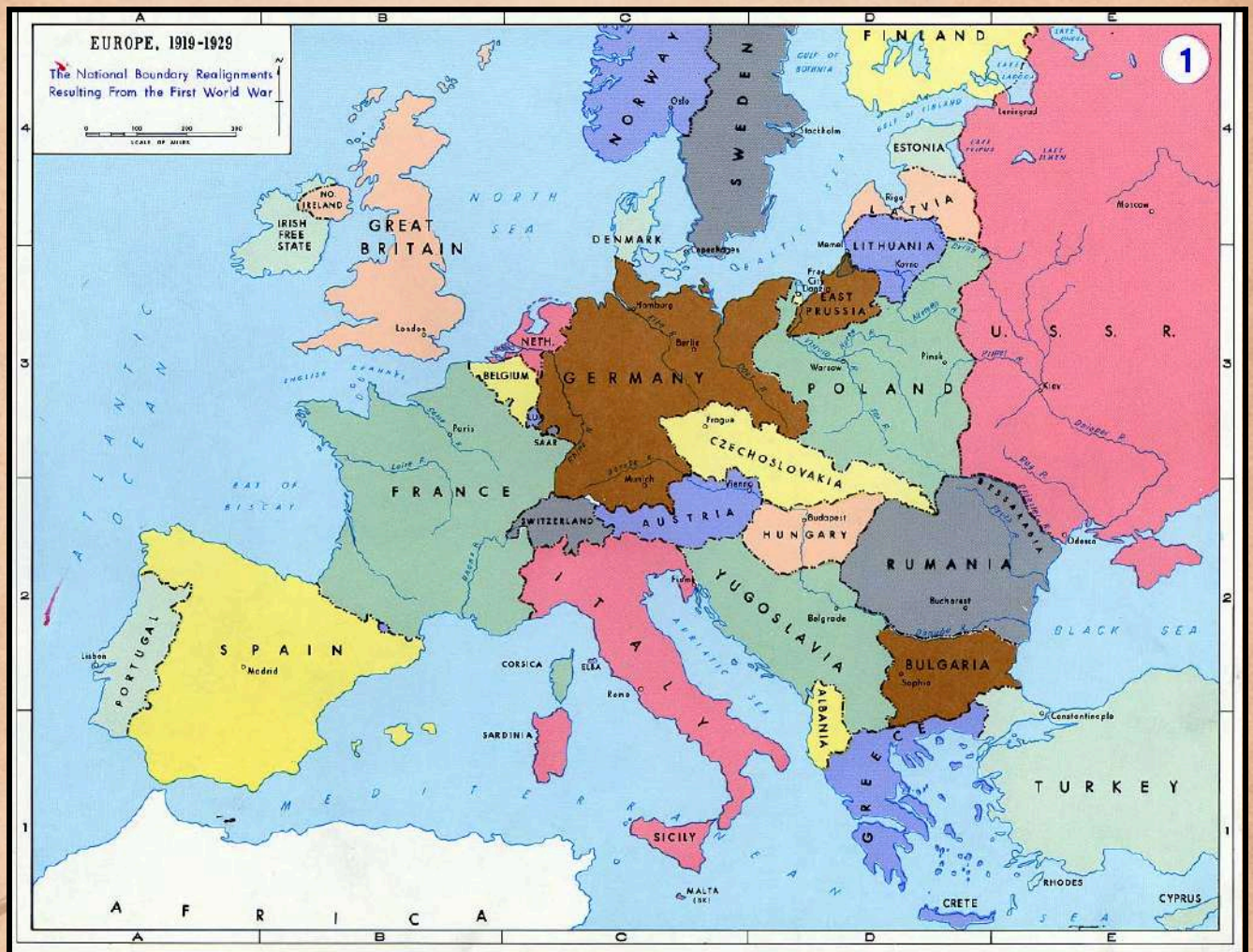
ARTICLE 15. Judgment and review:

The judgment shall be announced in open court and shall state the reasons on which it is based. Any review, confirmation, or execution of sentence shall take place in accordance with the constituting authority and rules governing the Tribunal.

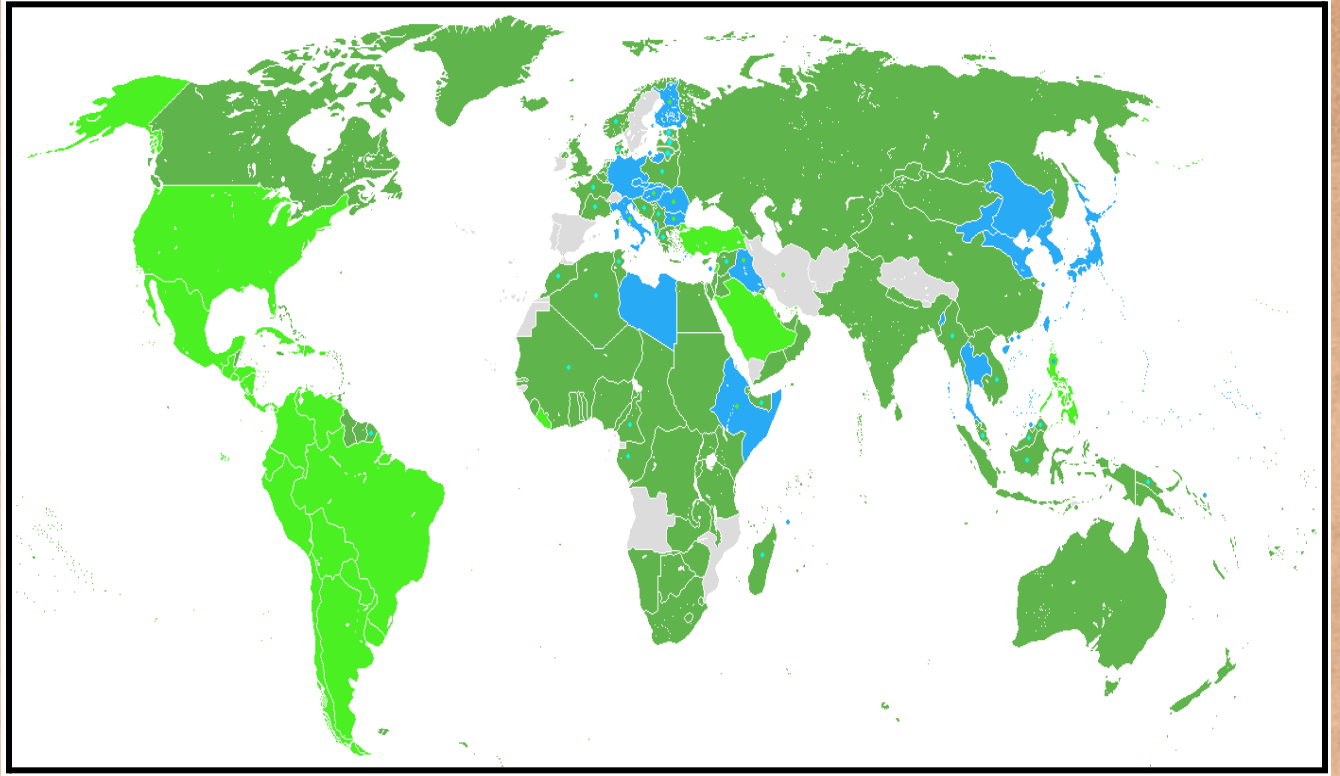


MAPS

Note: Delegates have been provided with these basic maps for easier understanding. The EB appreciates it if delegates go through this, but please note that delegates are expected to research more about maps and territorial captures.



Post World War 1 map



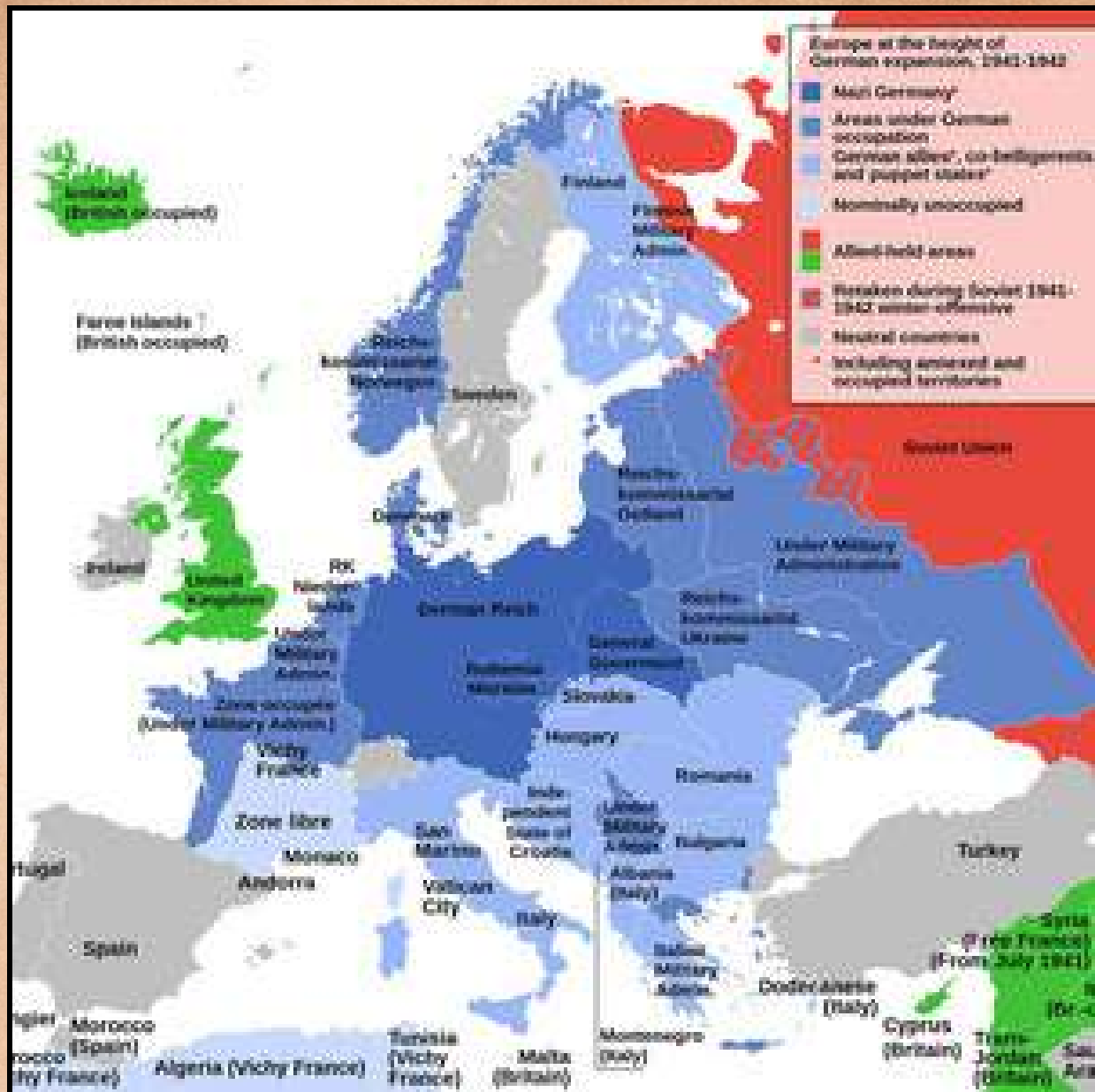
Map with the Participants in World War II:

- Dark Green: Allies before the attack on Pearl Harbour, including colonies and occupied countries.
- Light Green: Allied countries that entered the war after the Japanese attack on Pearl Harbour.
- Blue: Axis powers and their colonies
- Grey: Neutral countries during WWII



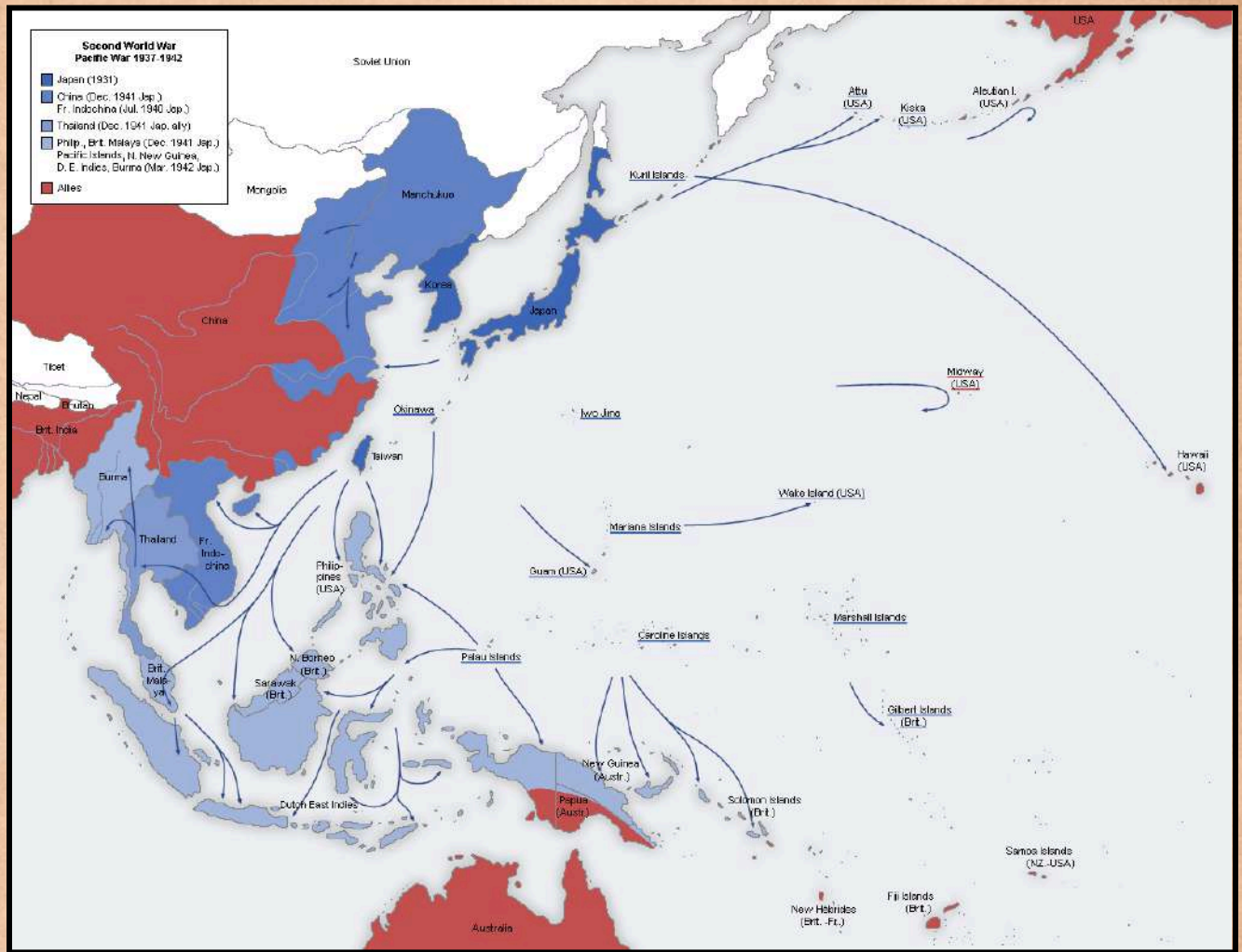


Sino-Japanese War



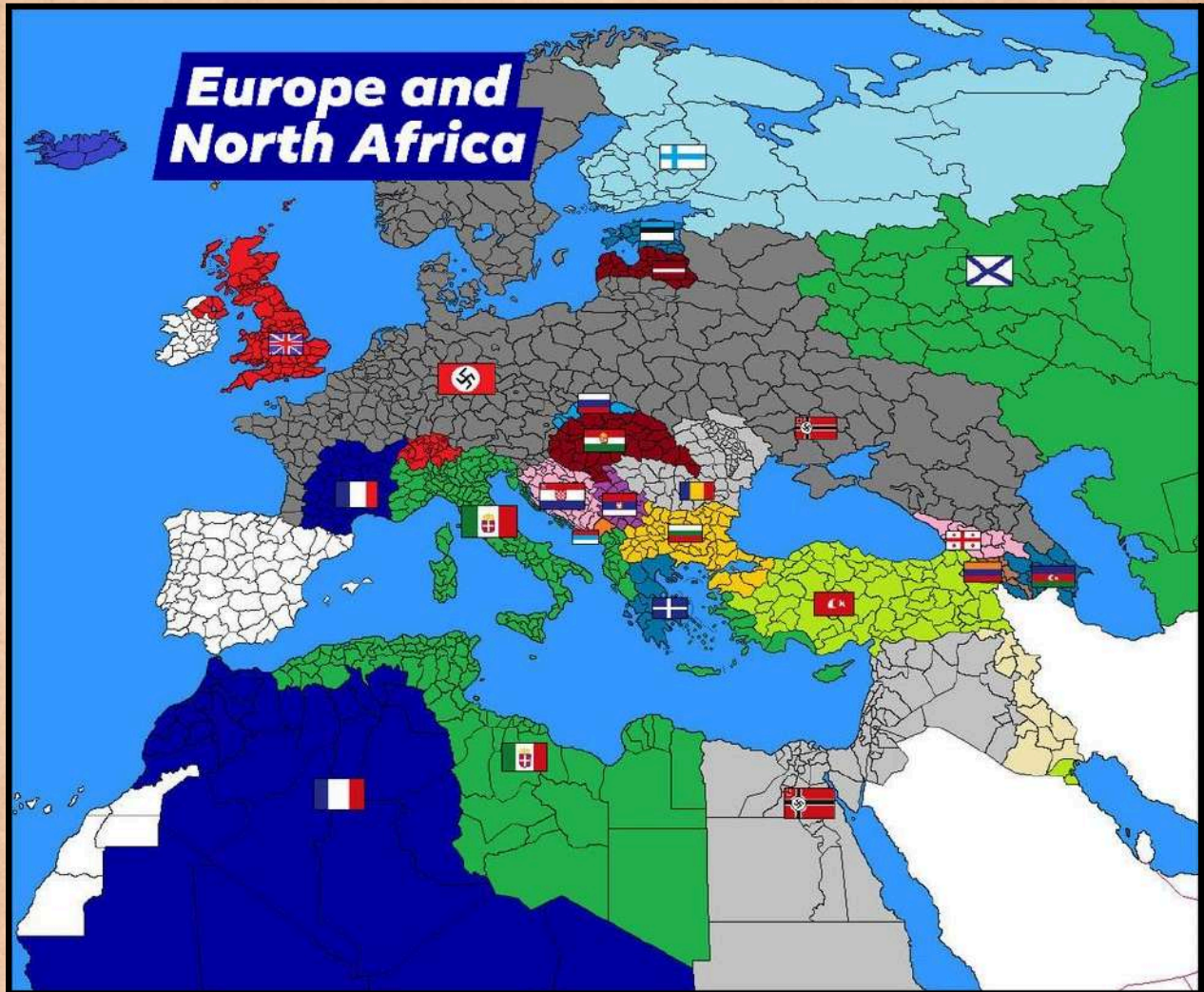
European theater





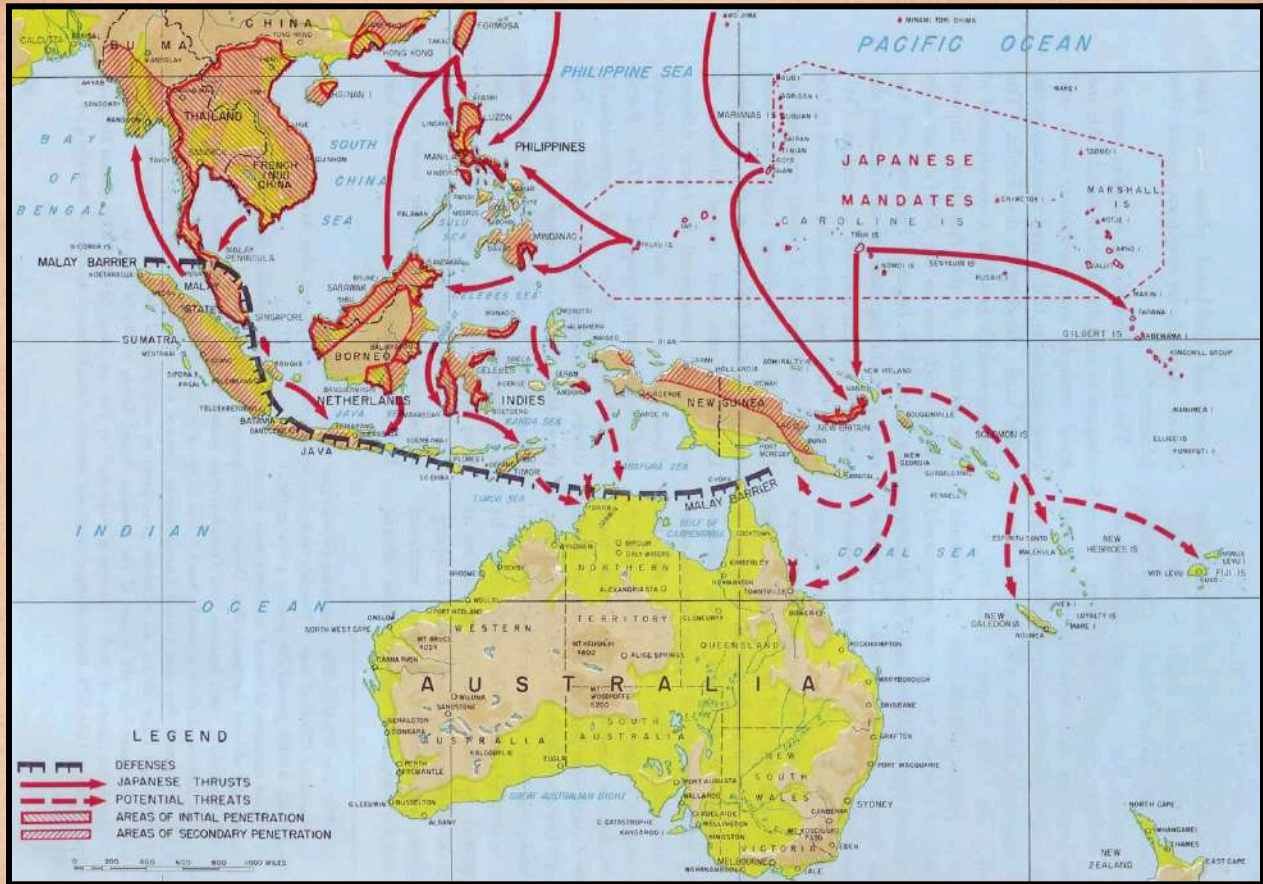
Pacific theater





Europe and North Africa



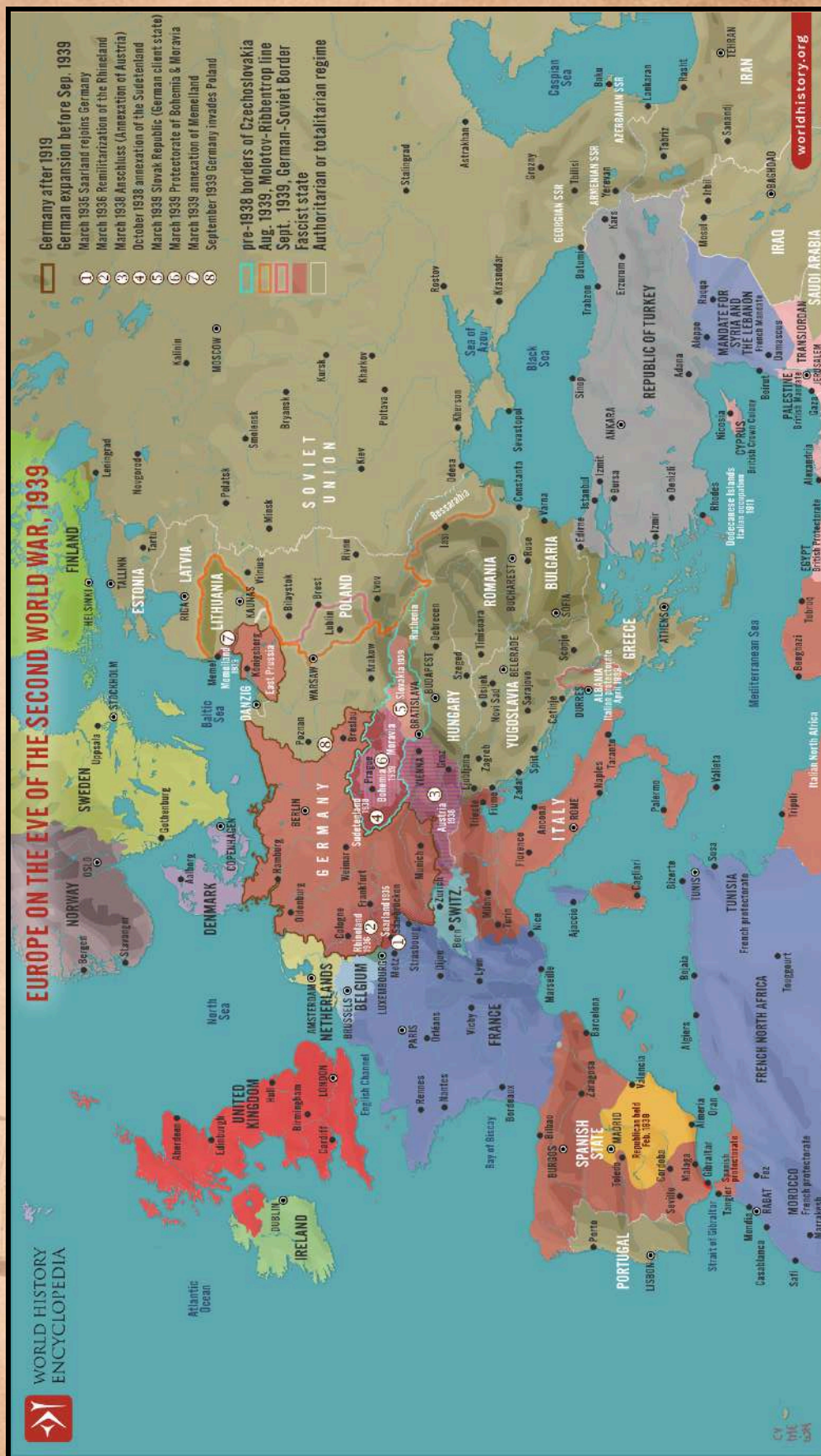


Expansion of the Japanese Empire in the Pacific



WORLD HISTORY
ENCYCLOPEDIA

Germany after 1919
 German expansion before Sep. 1939
 March 1936 Saarland rejoins Germany
 March 1938 Remilitarization of the Rhineland
 March 1938 Anschluss (Annexation of Austria)
 October 1938 annexation of the Sudetenland
 March 1939 Slovak Republic (German client state)
 March 1939 Protectorate of Bohemia & Moravia
 September 1939 annexation of Memel
 September 1939 Germany invades Poland
 pre-1938 borders of Czechoslovakia
 Aug. 1939, Molotov-Ribbentrop line
 Sept. 1939, German-Soviet Border
 Fascist state
 Authoritarian or totalitarian regime



SUMMARY OF THE TREATY OF PEACE WITH GERMANY

"SECOND PEACE OF VERSAILLES"

The preamble names as parties of the one part the United States, the British Empire, France, Italy, and Japan, who with Belgium, Poland, and twenty other smaller powers are described as the allied and associated powers, and on the other part Germany.

On the request of the imperial government an armistice was granted on Nov. 11, 1918, by the allies, in order that a treaty of peace might be concluded, and that the war should be replaced by a firm, just, and durable peace, the plenipotentiaries agreed as follows:

From the coming into force of the present treaty, the state of war will terminate, and official relations with Germany will be resumed by the allies.

PART I.—The covenant of the League of Nations constitutes part of the peace treaty, which places upon the league many specific and general duties. Members will have one vote, and not more than three representatives.

Council.—Will consist of representatives of the five great allied powers, with representatives of members selected by the assembly, and will meet at least once a year. Each state will have one vote and not more than one representative.

Secretariat.—A permanent secretariat will be established at the seat of the League of Nations.

Armaments.—The council will formulate plans for a reduction of armaments, to be revised every ten years.

Prevention of War.—Members are pledged to inhibit disputes by arbitration, and not to resort to war until three months after the award.

Members.—The council will determine disputes or to give advisory opinions.

Members resorting to war in disregard of the covenant will be immediately excluded from all intercourse with other members.

The council will consider what action can be taken by the league for the protection of the peace.

Validity of Treaties.—All treaties concluded after the institution of the league will be registered.

Monroe Doctrine.—The covenant abrogates all obligations between nations inconsistent with its terms, but nothing in it shall affect the validity of international engagements, such as treaties of arbitration or regional understandings, like the *Monroe Doctrine*, for securing the maintenance of peace.

Mandatory System.—The league of nations not yet able to stand by themselves will be entrusted to advanced nations who are best fitted to administer them.

World Labor.—The league members will endeavor to secure and maintain fair conditions of labor for men, women, and children in their own countries and other countries, and just treatment of the native inhabitants of territories under their control.

League.—Original Members of the League of Nations Signatories of the Treaty of Peace, and States invited to accede to the Covenant.

PART II.—Boundaries of Germany.—From the frontiers of Belgium, Holland, and Germany south to neutral Moresnet, east line of Eupen, northeast and east line of Malmédy to Luxembourg, north and east line of Saar Basin, north and east line of Alsace-Lorraine, present Switzerland frontier, Austria frontier of Aug. 3, 1914, Czechoslovakia frontier, and east line of Upper Silesia, Germany and Austria, to near Neustadt; thence north, west, northwest and northward to the Baltic Sea, and east to the Baltic Sea.

PART III.—Belgium.—Germany is to consent to the abrogation of the treaty of 1839, by which Belgium was established as a neutral state, and to agree to any convention with which the allies may determine to replace them; to recognize the full sovereignty of Belgium over the contested territory of Moresnet, the cities of Eupen and Malmédy, the inhabitants of which, within six months, to proceed against this change of sovereignty, the final decision to be referred to the League of Nations.

Luxembourg.—Germany renounces its various treaties and conventions with Luxembourg from Jan. 1, 1918.

Left Bank of the Rhine.—Germany is forbidden to maintain or construct any fortifications or to maintain armed forces less than fifty kilometers from the east of the Rhine.

Saar Basin.—As compensation for the destruction of railroads in northern France, and as payment on account of reparations, Germany cedes to France full reversion of the coal mines of the Saar basin with their subsidiaries, accessories and facilities. The territory will be governed by a commission.

After fifteen years a plebiscite will be held to ascertain the wishes of the population as to continuance under the League of Nations, union with France, or union with Germany. All inhabitants under 20 years of age will have the right to vote.

Alsace-Lorraine.—The territories ceded to Germany by the treaty of Frankfurt are returned to France, with their frontiers as before 1871, to date from the signing of the armistice, and to be free of all public debts. All public and private property of German ex-residents passes to France without payment of credit, as well as ownership of railroads and rights over concessions of tramways. The Rhine bridges pass to France with the obligation for their upkeep.

Austria.—Germany recognizes the independence of Austria.

Czechoslovakia.—Germany recognizes the complete independence of the Czechoslovak state, including the autonomous territory of the Ruthenians south of the Carpathians.

Germany renounces in favor of the Czechoslovak state all Italian territory in the Kreis of Ratibor, to the south of Katscher and west of Krasowitz. Germany renounces in favor of the Czechoslovak state the Kreis of Loebnitz south and southeast of Loebnitz, in case the plebiscite decides for Germany instead of for Poland.

Poland.—Germany cedes to Poland Posen, and the province of West Prussia on the left bank of the Vistula. A plebiscite will be held in Upper Silesia to decide whether the inhabitants wish to be attached to Germany or Poland.

East Prussia.—The southern and eastern frontier is to be fixed by plebiscite, the first in the region of Allenstein, and the second in the circles of Suibin and Rosenberg and the parts of the circles of Marienburg and Mallesburg.

Poland.Germany and Danzig will secure suitable railroad communication across Germany territory on the right bank of the Vistula between Poland and Danzig, and Poland shall grant free passage from East Prussia to Germany.

Memel.—The northeastern corner of Prussia, about Memel, is to be ceded to Germany by the allies.

Free City of Danzig.—Danzig and the district about it is to be constituted into the "free city of Danzig."

Schleswig.—The frontier between Germany and Denmark will be fixed by the free determination of the population. The region south of the line from Flensburg harbor, southward and westward to the North Sea, south of the heights of Hehr and Alster, will be administered by a commission of four, the population will vote in two zones, after which a new frontier will be drawn and Germany will renounce all sovereignty over Schleswig.

Holstein.—The islands of Heligoland and Dierk shall have all fortifications and harbors destroyed.

Russia and Russian States.—Germany agrees to abrogate the *Brest-Litovsk* and other treaties, to recognize all treaties entered into by the allies with states which were a part of the former Russian empire.

PART IV.—Outside Europe, Germany renounces all rights, titles, and privileges to her own or her allies' territories in the Pacific, and accepts whatever measures are taken by the allies in relation thereto.

German Colonies.—Germany renounces in favor of the allies her colonies and overseas possessions.

China.—Germany renounces in favor of China all privileges and immunities resulting from the Boxer protocol of 1901, except Kiam Chan, and agrees to return to China, all the astronomical

instruments seized in 1901. Germany accepts the abrogation of concessions at Hankow and Tientsin, China agreeing to open them to international use, the provisions in favor of Great Britain, her property at Canton, and of France and China jointly, the German school at Shanghai.

Spain.—Germany abrogates all agreements with Spain made before July 22, 1917.

Liberia.—Germany renounces all rights under the international arrangements of 1811 and 1812 regarding Liberia.

Morocco.—Germany renounces all her rights, titles, and privileges under the act of Algiers and the Franco-German agreements of 1909 and 1911.

Egypt.—Germany renounces the British protectorate over Egypt, and renounces the capitulation, and all the treaties concluded by her with Egypt; consents also to the transfer to Great Britain of free navigation of the Suez Canal.

Turkey and Bulgaria.—Germany accepts all arrangements which the allies make with Turkey and Bulgaria.

Shantung.—Germany renounces in favor of Japan all rights, titles, and privileges, not only as Kiam Chan and the railroads, mines, and cables acquired by her treaty with China of March 6, 1917, and of all other agreements in Shantung Province.

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France will not assume any part of Germany's pre-war debt there, nor will Poland share in certain German debts incurred for the oppression of Poland.

Mandatory powers will not assume any German debts or give any credit for German government property.

Germany is required to pay cost of armaments of occupation, this cost to be a first charge on German property.

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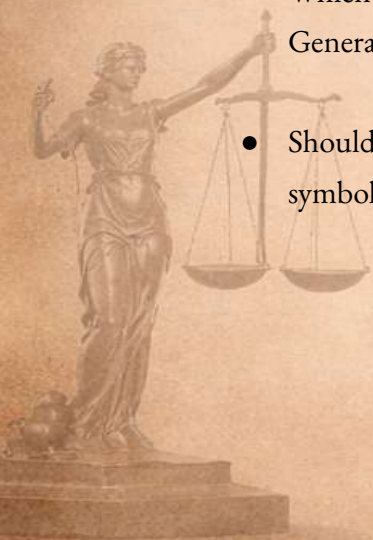
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Key Questions for Consideration

The Second World War was a global war that involved the entire world. It left behind not only destruction but also urgent questions of accountability and justice. In the wake of Japan's surrender, the upcoming Tokyo trials will present the delegates with the task of determining who should be tried, on what grounds, and in what manner. The main purpose of this committee is not to revisit the war, but to discuss the manner in which accountability will be determined in the trials.

To help the delegates understand the issues that may be presented in the trials, the following may be considered:

- What legal framework should govern the trials: the existing international law, or newly emerging ideas such as crimes against peace and crimes against humanity as they will be defined?
- Can an individual be held accountable for his/her actions when they were taken in the name of his/her country?
- Should only the individual leaders be held accountable, or should it include institutions such as the military and governments?
- Which individuals should be prosecuted: only the highest officials (e.g., Prime Ministers, Generals), or lower officials as well?
- Should Emperor Hirohito be prosecuted, given his role in the Japanese constitution and his symbolic role in Japan?

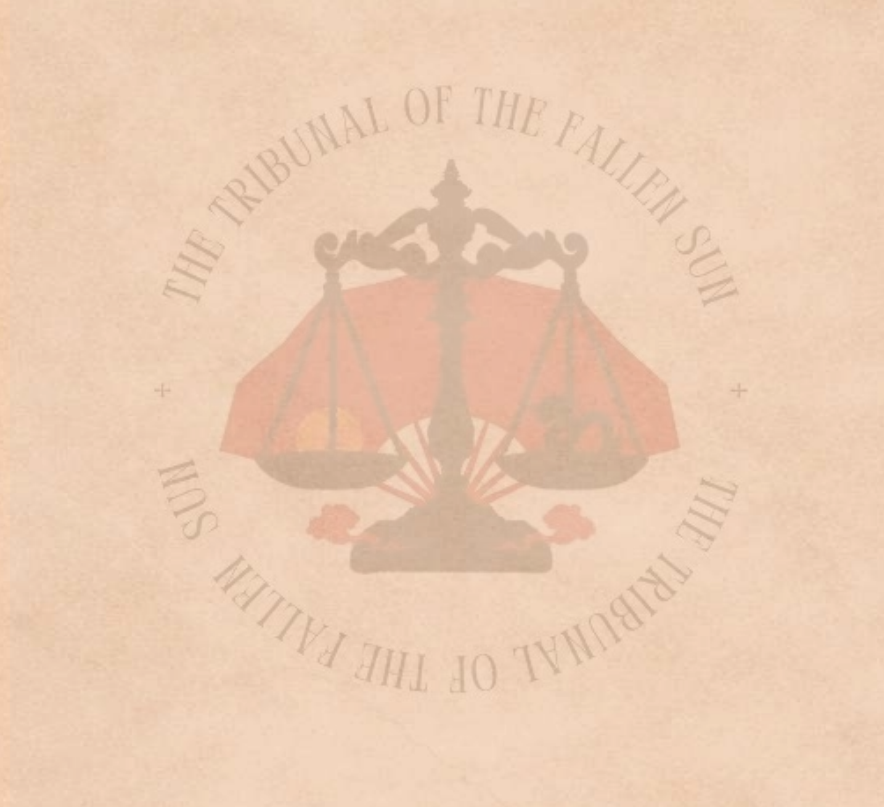


- What criteria will be used to include or exclude individuals from prosecution?
- How accountable can an individual be for actions taken by subordinates in a military hierarchy?
- How accountable can an individual be in a system where responsibility is diffuse (civilian vs. military)?
- Can the failure to prevent crimes, unlawful conduct, be considered a crime in itself?
- Can the tribunal be considered fair if it is established and controlled by the victorious Allied powers? Should the tribunal include judges from neutral or non-Allied nations?
- Should the actions, such as the bombing of cities and the use of atomic weapons, be subject to legal evaluation, or only the actions of the Axis?
- Should the tribunal examine the actions of all the parties to the war, or only the actions of the defeated?
- How should the tribunal be constituted: as an international tribunal, a military tribunal, or a combination of both?
- What rights should be granted to the accused?
- What role should evidence play in the determination of guilt?
- Will the decisions made by this tribunal set precedents for future law?
- Can such proceedings truly deliver justice, or are they merely a political tool?



- How should history view the responsibility for the war: as the responsibility of individuals, systems, or the world?

This section intends to help delegates engage with the legal, political, and moral questions that will emerge during the Tokyo Trials. By working on these issues, delegates will be better prepared to participate more meaningfully in the proceedings of the committee.



RULES OF PROCEDURE

The Tribunal of the Fallen Sun

Delegates are requested to read this section thoroughly to understand the procedure of the committee. The committee proceedings begin with a roll call. During the roll call, the Executive Board calls out the names of all countries/portfolios in alphabetical order, and the delegates may respond in the following ways:

(i) ***Present*** - When delegates respond with 'present', they are given the option to abstain, i.e., neither vote in favour nor vote against a document in substantive voting. Substantive voting relates to voting for draft resolutions, amendments, inter alia.

(ii) ***Present and voting*** - When delegates respond with 'present and voting', they are required to either vote for or against a document in substantive voting. They are not given the option of abstention.

It is important to note that all delegates are **required** to vote for procedural matters such as passing a motion for a moderated caucus, passing a motion for an unmoderated caucus, inter alia. No abstention is permitted in procedural votes.



Nature of the Committee

The Justice Committee shall function as an integration of a courtroom setting and a Model United Nations committee, combining structured legal proceedings with diplomatic debate. For the purpose of this committee, all participating delegates will be recognised and treated as advocates. Delegates, according to their portfolios, will be divided mainly into two factions: the defence and the prosecution. The defence will consist of delegates who have portfolios that were a part of the Axis Powers, while the prosecution will have delegates whose portfolios were a part of the Allied Powers.

Forms of Debate

The forms of debate are broadly classified into 2 categories:

1. Formal Debate - Discussion in a formal debate can be done through various forms of debate, as given below:

(i) Opening Statements - Both the prosecution and the defence will give their opening statements one by one. Both the prosecution and defence will get 60 seconds to speak. No interruptions will be allowed in between. However, there is no limit to the number of points of information asked about an advocate's speech.

(ii) General Speakers' List (GSL) - In a GSL, each delegate, by default, gets 90 seconds to speak. However, delegates may choose to amend this time if they feel it necessary. If a delegate finishes their speech before the allotted time, they are required to yield it, as explained later. There is no topic for a GSL, and delegates may use it to discuss whatever they feel is relevant. They can use it to give an introduction to the agenda, present their stance, highlight problems, inter alia. The GSL is an inexhaustible list and remains open throughout the conference.

(ii) **Provisional Speakers' List (PSL)** - A PSL differs from a GSL as it is conducted on a specific topic and is not inexhaustible. The total time of the list, along with the individual speaker's time, must be specified. In case delegates finish their speeches before it has elapsed, they are required to yield the remaining time.

(iii) **Round Robin**- In a Round Robin, it is mandatory for all delegates to speak. Not unlike moderate caucuses, they have a prescribed time and a specific subtopic. It is a helpful way to get the opinions of all the delegates present.

(iv) **Open Floor**- This is the most disruptive form of debate. The open floor debate format allows any delegate to raise their placard and speak when recognised by the chair. Unlike moderated caucuses, there's no set speaker list or time per speaker. It encourages spontaneous, interactive discussion, letting delegates directly address points or respond to others.

(v) **Witness Trial Session**- This will be the core judicial phase, which will include summoning various witnesses from a list of witnesses that the executive board will provide. In case a delegate wants to call upon a witness not mentioned in the list, a request needs to be made prior to the meeting through a communiqué, which the executive board can approve. The witness trial session will feature direct examination, cross-examination, open questions and answers from other delegates. The Witnesses will include police officers, Medical officers, Journalists, Survivor Representatives, and International representatives.

(vi) **Closing Statements**- On the final day of the conference, rather than featuring final documentation, the court will feature closing statements from all the delegates, which would include the non-affiliated delegates as well. Following the closing statements, the judges (the executive board) will give a ruling.



2. **Informal Debate** - Discussion in an informal debate can be done via moderated and unmoderated caucuses.

(i) **Moderated Caucus** - Moderated caucuses are of the utmost importance in a committee as they enable delegates to streamline debate. This allows delegates to debate upon a specific subtopic of the agenda within the prescribed time.

(ii) **Unmoderated Caucus** - Unmoderated caucuses are a form of informal debate where the delegates are allowed to speak directly to each other. Unmoderated caucuses are used to discuss potential moderated caucus topics, to complete documentation, as well as for lobbying and building blocs.

Motions

A motion is raised when a delegate wants to lead the committee in a specific direction. The following are the types of motions that will be used in committee:

1. Motion to Open Debate

This motion is raised to commence debate in the committee. It is raised at the beginning of the first committee session on the first day of the conference.

How to raise the motion: “The Delegate of the Russian Federation would like to raise a motion to open debate.”

2. Motion to Open the General Speakers’ List

This motion is raised when a delegate would like to open the General Speakers List and hence commence formal debate. The total time need not be specified, as the GSL is inexhaustible and is reverted to in case all motions fail to pass in committee.

How to raise the motion: “The Delegate of the United States of America would like to raise a motion to enter formal debate and open the General Speakers’ List”

3. Motion for a Moderated Caucus

This motion is used when the committee wants to discuss specific subtopics of the agenda. While raising this motion, the topic, total time, and the individual speaker's time must be mentioned. It is important to note that the total time of a moderated caucus must be divisible by the per-speaker time so as to incorporate a whole number of speakers before the moderated caucus elapses. The maximum total time it can be raised for is 20 minutes.

How to raise the motion: "The Delegate of the French Republic would like to raise a motion for a moderated caucus on the topic 'XYZ' for a total time of 15 minutes, and the individual speaker's time being 60 seconds"

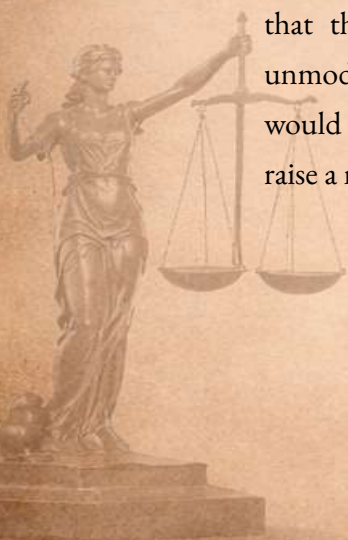
4. Motion for an Unmoderated Caucus

During the first few committee sessions, unmoderated caucuses are used to build blocs, converse with other delegates, and discuss potential moderated caucus topics, while in the last few committee sessions, they are primarily used for completing documentation. Just like moderated caucuses, the maximum time an unmoderated caucus can be raised for is 20 minutes. However, unmoderated caucuses do not have a topic or an individual speaker's time.

How to raise the motion: "The delegate of the Bolivarian Republic of Venezuela would like to raise a motion for an unmoderated caucus for a total time of 10 minutes"

5. Motion for Extension

This motion is used to extend a moderated or unmoderated caucus. It must be kept in mind that they can only be extended by half of the original time they were raised for. If an unmoderated caucus was originally raised for 10 minutes, then for an extension, the motion would be raised by stating: "The delegate of the Oriental Republic of Uruguay would like to raise a motion to extend the unmoderated caucus by a total time of 5 minutes"



6. **Motion to open a Provisional Speakers' List (PSL)**

The motion to open a PSL is generally used for debate when the committee is in crisis or to discuss documentation. Whilst raising this motion, delegates need to specify the topic, the total time, and the individual speaker's time.

How to raise the motion: "The delegate of the Republic of Peru would like to raise a motion to open a Provisional Speakers' List on the topic 'ABC' for a total time of 10 minutes and the individual speaker's time of 60 seconds"

7. **Motion to move into a Closed Room Discussion**

The motion for a Closed Room Discussion allows the committee to divide into blocs, Allied and Axis powers, for the purpose of engaging in private strategic deliberations. This format enables delegates to plan actions, negotiate positions, and coordinate responses without immediate scrutiny from opposing blocs.

How to raise the motion:

"The Delegate of [Portfolio] would like to raise a motion to move into a Closed Room Discussion for a total duration of 10 minutes."

8. **Motion to Recess**

This motion is used to temporarily suspend debate at the end of each committee session.

How to raise the motion: "The delegate of the Kingdom of Spain would like to raise the motion for the committee to recess"

9. **Motion to Adjourn**

This motion is raised on the last day of the conference to conclude committee proceedings.

How to raise the motion: "The delegate of the People's Republic of China would like to raise the motion to adjourn the committee"

Documentation

1. Communiqué:

A communiqué is a message that is sent by a delegate to the government of their country or any person of their choice, issuing an instruction or a set of instructions, in this committee. Communiqués in this committee will be of two types: Private and public, and the delegates can also send a “joint” communiqué, in collaboration with other delegates.

A private communiqué will be kept secret and will not be revealed to the Committee. It must be written in a note and sent to the Chair for approval (it should specify “via EB”). The note must be headed by the word “communiqué”, followed by whether it is a Private/Public communiqué. The delegates must understand that simply sending a communiqué to the directors does not mean that their action has been approved; it is up to the discretion of the chair to pass or reject their communiqué, depending on whether they think it is appropriate or consequential to the direction that the committee is taking.

A communiqué, unlike directives, does not have to be written in the UN resolution format and can be written in simple English; this means that you do not have to use clauses. Delegates are advised to send communiqués to deal with internal crises in their own nations in ways that they believe would affect the proceedings of the committee and to even carry out any secret investigative work.

They can further use them to increase their own social, economic or political power, or bring down their adversaries in the committee itself. There is no need to send a communiqué regarding a topic that has no bearing on committee proceedings.

A Sample Communiqué:

PRIVATE COMMUNIQUE

To: ABC

From: XYZ

We require your assistance to invade Rome. Kindly provide us with 15,000 of your finest troops.

Further details will be shared.

2. Press Release:

This can be used by a delegate, or a group of delegates, to inform the public about certain facts or to make some announcements about any policy changes. The delegates can also use this as a tool to spread misinformation about any ongoing crisis. One of the most important uses of a “Press Release” is to try to influence public opinion and win their support.

Format for a Press Release:

PRESS RELEASE

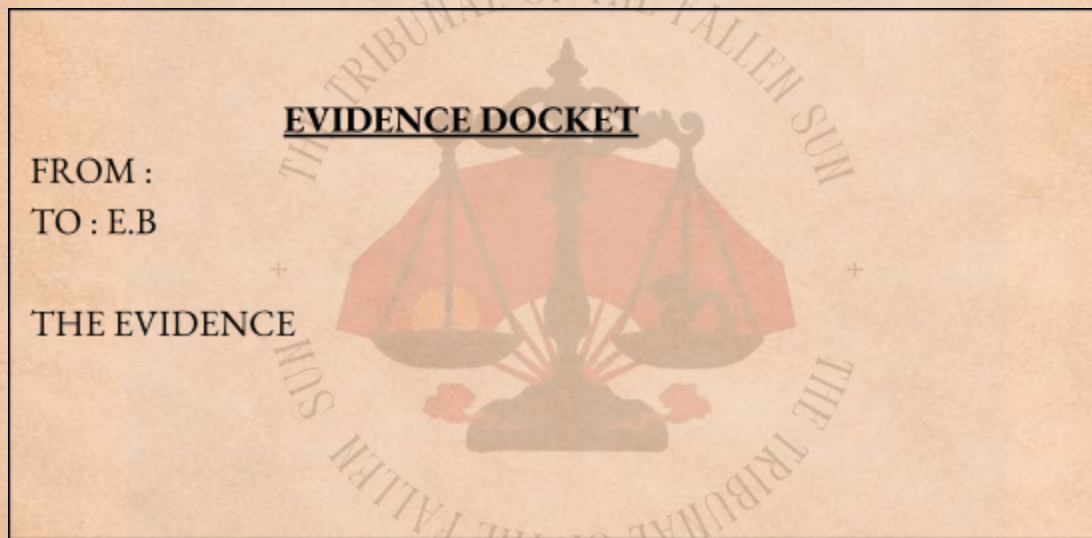
AN APPROPRIATE TITLE/HEADING FOR THE STATEMENT

BODY OF THE STATEMENT

SIGNATURES - XYZ, ABC

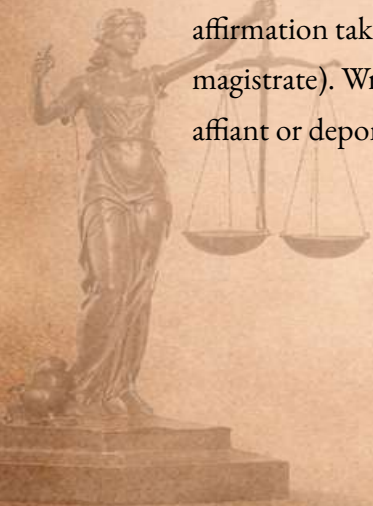
3 Evidence Dockets

Evidence dockets (or more commonly, an "evidence docket" as a compilation) is the compilation or file that contains all of the physical evidence and documents that have been officially presented to the court or accepted by the court in a matter. This may also include witness statements, physical exhibits, documentary evidence and other materials. The evidence docket is an accumulation of evidence that has been prepared for review by the court to assist in the adjudication of the matter upon trial or hearing.



4 Written Affidavit

A written affidavit is a formal written statement or declarations of facts made voluntarily, by an affiant or deponent, and sworn to, because the affiant or deponent declares the facts to be true with an oath or affirmation taken before a person legally capable of administering oaths (i.e. notary public, or a magistrate). Written affidavits are made in the first person ("I went, I said") and contain only facts the affiant or deponent can verify.



WRITTEN AFFIDAVIT

FROM :

TO : E.B

The Written Affidavit

Other Documentations

1. Chits

Unlike communiqués, chits do not require any strict formatting. They are usually used to establish communication either with another delegate or with the Executive Board. Do note that one has to use parliamentary language in all chits. There are mainly 3 types of chits:

a) Informal chit to the EB

These are used to establish communication with the members of the Executive Board without disrupting the flow of the committee. Situations in which these can be used include: request to move the delegate's name up/down on the speaker's list, asking for clarification regarding a documentation sent to the EB, asking procedural doubts, etc.

The basic format for this type of chit is:

To: The Executive Board

From: [Portfolio]

body

b) Informal Chit to another delegate

These chits are not marked by the EB and are used to directly speak to another delegate while the committee is still in procedure. Informal chits to other delegates are one of the most essential tools of lobbying, and thus, delegates should ensure that the language is as diplomatic as possible.

Situations in which these can be used include: asking another delegate about their stance, asking them to join your bloc, etc.

The format for this is very similar to the informal chit to the EB-

To: [Receiver's Portfolio]
From: [Sender's Portfolio]

body

c) Chit via the EB

Chits via the EB are used when a delegate wants the Executive Board to take note of certain communications between delegates. These chits are marked by the EB. They are used to ask delegates points of information regarding their speeches, documentations etc. Replies to points of information are also sent as chits via the EB.

Format:

To: [Receiver's Portfolio] (VIA THE EB)
From: [Sender's Portfolio]

Body

d) Substantive Chits

Substantive chits are those which contribute to the debate in the committee. These are only addressed to the Executive Board and are marked. Only use these when you are unable to convey your points in your speech because of a lack of time, or if you wish to better explain something you mentioned in

your speech. Be concise and to the point while writing substantive chits. Ensure that these do not exceed 80 words.

Substantive Chit

To: The Executive Board

From: [Sender's Portfolio]

Body (5-6 pointers)

-
-
-
-



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